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EAPA Cons. Case 8164

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Re: Notice of Determination as to Evasion

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) investigation 8164, U.S. Customs and Border Protection (CBP) has determined that there is substantial evidence that Amek Aluminum & Stainless, Inc. (Amek); American Piping Products, Inc. (APP); GY Fleet Inc. (GY Fleet); USA Lee Long Inc. (USA Lee Long); and Leadtop Inc. (Leadtop) and its associated company GME Trade Ease Inc. (GME Trade Ease) (collectively, the Importers) entered merchandise covered by antidumping (AD) and countervailing (CVD) duty orders A-570-956 and C-570-957¹ on seamless carbon and alloy steel standard, line and pressure pipe (SLP pipe) from the People's Republic of China (China) and A-570-943 and C-570-944 on certain oil country tubular goods (OCTG) (collectively, covered merchandise) from China into the customs territory of the United States through evasion.² Substantial evidence demonstrates

¹ See 19 C.F.R. § 165.1.

² See *Certain Seamless Carbon and Alloy Steel Standard, Line, and Pressure Pipe from the People's Republic of China: Final Determination of Sales at Less Than Fair Value and Critical Circumstances, in Part*, 75 FR 574409 (September 21, 2010), as amended in *Certain Seamless Carbon and Alloy Steel Standard, Line, and Pressure Pipe from the People's Republic of China: Amended Final Determination of Sales at Less Than Fair Value and*

that the Importers imported OCTG and SLP pipe from China into the United States by undervaluation, misclassification, and transshipment through Thailand. The Importers did not declare that the merchandise was subject to the *SLP AD/CVD Orders* and *OCTG AD/CVD Orders* on entry and, as a result, no cash deposits were collected on the merchandise.

Background

On February 7 and 11, 2025, Vallourec Star, L.P.; BENTELER Steel/Tube Manufacturing Corp.; and Tenaris Bay City, Inc. (the Allegers), U.S. producers and manufacturers of SLP pipe and OCTG, submitted allegations to CBP that the Importers were evading the *SLP AD/CVD Orders* on SLP pipe from China.³ The Allegations asserted that the Importers were importing Chinese-origin SLP pipe that was transshipped through Petroleum Equipment (Thailand) Co., Ltd. (PET) in Thailand.⁴ On February 24, 2025, CBP acknowledged receipt of the Allegations.⁵ On February 24, 2025, CBP also determined in EAPA investigation 7890 (EAPA 7890) that Amek and several other importers entered Chinese-origin OCTG transshipped through PET in Thailand.⁶ Because this investigation also involves PET, CBP looked into whether the Importers in this investigation entered Chinese-origin OCTG covered by the *OCTG AD/CVD Orders*.

Antidumping Duty Order, 75 FR 69052 (November 10, 2010); see also *Certain Seamless Carbon and Alloy Steel Standard, Line, and Pressure Pipe from the People's Republic of China: Final Affirmative Countervailing Duty Determination, Final Affirmative Critical Circumstances Determination*, 75 FR 57444 (September 21, 2010), as amended in *Certain Seamless Carbon and Alloy Steel Standard, Line, and Pressure Pipe from the People's Republic of China: Amended Final Affirmative Countervailing Duty Determination and Countervailing Duty Order*, 75 FR 69050 (November 10, 2010) (*SLP AD/CVD Orders*); see also *Certain Oil Country Tubular Goods from the People's Republic of China: Final Affirmative Countervailing Duty Determination, Final Negative Critical Circumstances Determination*, 74 FR 64045 (December 7, 2009), as amended in *Certain Oil Country Tubular Goods from the People's Republic of China: Amended Final Affirmative Countervailing Duty Determination and Countervailing Duty Order*, 75 FR 3203 (January 20, 2010); see also *Certain Oil Country Tubular Goods from the People's Republic of China: Final Determination of Sales at Less Than Fair Value, Affirmative Final Determination of Critical Circumstances and Final Determination of Targeted Dumping*, 75 FR 20335 (April 19, 2010), as amended in *Certain Oil Country Tubular Goods from the People's Republic of China: Amended Final Determination of Sales at Less Than Fair Value and Antidumping Duty Order*, 75 FR 28551 (May 21, 2010) (*OCTG AD/CVD Orders*).

³ See Letter from the Allegers, "Seamless Standard, Line, and Pressure Pipe from China: Request for an Investigation under the Enforce and Protect Act," dated February 7, 2025 (Amek Allegation); see also Letter from the Allegers, "Seamless Standard, Line, and Pressure Pipe from China: Request for an Investigation under the Enforce and Protect Act," dated February 7, 2025 (APP Allegation); see also Letter from the Allegers, "Seamless Standard, Line, and Pressure Pipe from China: Request for an Investigation under the Enforce and Protect Act," dated February 7, 2025 (GY Fleet Allegation); see also Letter from the Allegers, "Seamless Standard, Line, and Pressure Pipe from China: Request for an Investigation under the Enforce and Protect Act," dated February 11, 2025 (Leadtop Allegation); see also Letter from the Allegers, "Seamless Standard, Line, and Pressure Pipe from China: Request for an Investigation under the Enforce and Protect Act," dated February 11, 2025 (USA Lee Long Allegation) (collectively, the Allegations). Vallourec Star, L.P.; BENTELER Steel/Tube Manufacturing Corp.; and Tenaris Bay City, Inc. (collectively, the Allegers) are all domestic producers of seamless steel standard, line, and pressure pipe and of OCTG in the United States and, as such, have standing to submit these Allegations pursuant to 19 U.S.C. § 1517(a)(6)(A)(ii), 19 C.F.R. § 165.1(2), and 19 C.F.R. § 165.11(a); see Allegations at 5 and Exhibit 2; see also CBP Memorandum, "Adding Information to the Administrative Record of EAPA 8164," dated December 18, 2025 (December Memorandum) at Attachment 5.

⁴ *Id.*

⁵ See 19 C.F.R. § 165.12; see also Email from CBP, "EAPA 8164-8166 & 8174-8175 - Official Receipt of Properly Filed Allegations," dated February 24, 2025 (Official Receipt).

⁶ See CBP Memorandum, "Adding Information to the Administrative Record of EAPA 8164," dated September 24, 2025 (September 24 Memorandum) at Attachment 42.

CBP found the Allegations' information reasonably suggested that the Importers entered covered merchandise into the customs territory of the United States through evasion.⁷ Consequently, on March 14, 2025, CBP initiated an EAPA investigation pursuant to Title IV, section 421 of the Trade Facilitation and Trade Enforcement Act of 2015.⁸ After initiation, CBP issued CBP Form 28 (CF-28) questionnaires to each of the Importers concerning certain entries from PET; VM Industry Co., Ltd. (VM Industry); and TSP Precision Steel Tube Manufacturing (Thailand) Co., Ltd. (TSP) and requested the corresponding entry and production documentation.⁹ Each Importer submitted a CF-28 response concerning its respective entries.¹⁰ After receiving these responses, CBP added two memoranda to the administrative record containing EAPA 7890's determination notice; Amek's CF-28 response from EAPA 7890; cargo exam documents; and internet screenshots concerning GME Trade Ease, GY Fleet, Leadtop, USA Lee Long, and PET's and TSP's freight forwarder Yifan Shipping (Thailand) Co., Ltd. (Yifan Shipping Thailand).¹¹

⁷ See 19 U.S.C. § 1517(b)(1); *see also* 19 C.F.R. § 165.15.

⁸ See 19 U.S.C. § 1517(b)(5); *see also* 19 C.F.R. § 165.13; *see also* CBP Memorandum, "Initiation of Investigation for 8164-8166 and 8174-8175 (Consolidated Case 8164)," dated March 14, 2025.

⁹ On March 28, 2024, CBP issued a CF-28 before the EAPA investigation to APP on entry [#]9399 from PET. On March 18, 2025, CBP issued CF-28s to APP on entries [#]4819 and [#]2969 from TSP, to Amek on entry [#]8942 from PET, to GY Fleet on entries [#]8537 and [#]2331 from PET, to GY Fleet on entry [#]2323 from VM Industry, to Leadtop on entry [#]1625 from PET, to Leadtop on entries [#]6940 and [#]8910 from VM Industry, to USA Lee Long on entry [#]4385 from PET, and to USA Lee Long on entries [#]4393 and [#]9442 from VM Industry. On March 25, 2025, CBP issued a CF-28 to GME Trade Ease on entry [#]7732 from VM Industry.

¹⁰ APP submitted its CF-28 response on entry 9399 from PET on April 26, 2024, which was before this EAPA investigation. Leadtop submitted its CF-28 responses on entries 6940 and 8910 from VM Industry on April 6, 2025 and on entry 1625 from PET on April 9, 2025. Amek submitted its CF-28 response on entry 8942 from PET on April 10, 2025. USA Lee Long submitted its CF-28 responses on entries 4393 and 9442 from VM Industry and on entry 4385 from PET on April 14, 2025. GY Fleet submitted a CF-28 response on entries 8537 and 2331 from PET and on entry 2323 from VM Industry on May 30, 2025. GME Trade Ease submitted its CF-28 response on entry 7732 from VM Industry on June 11, 2025. After CBP announced the EAPA investigation to the Importers, it asked them to bracket their respective CF-28 responses. Amek, APP, and USA Lee Long submitted their bracketed CF-28 responses. However, Leadtop, GME Trade Ease, and GY Fleet did not respond to CBP emails and did not bracket their own CF-28 responses. *See* September 24 Memorandum at Attachments 18 and 30; *see also* Leadtop's CF-28 Response, "CF28 Resp for Entry 6940 & 8910 from VM Industry," dated April 6, 2025 (Leadtop CF-28 Response – VM Industry); *see also* Leadtop's CF-28 Response, "CF28 Resp for Entry 1625 from PET," dated April 9, 2025 (Leadtop CF-28 Response – PET); *see also* GY Fleet's CF-28 Response, "CF-28 Response," dated May 30, 2025 (GY Fleet CF-28 Response); *see also* GME Trade Ease's CF-28 Response, "CF28 Response," dated June 11, 2025 (GME Trade Ease CF-28 Response); *see also* Amek's CF-28 Response, "Redacted CF-28 Response," dated August 6, 2025 (Amek CF-28 Response); *see also* APP's CF-28 Responses, "American Piping Products, Inc.'s Resubmission of Certain CF-28 Responses per CBP's July 28th Request," dated August 6, 2025 (APP CF-28 Responses); *see also* USA Lee Long's CF-28 Response, "CF28 Redactions for Entries 4393 & 9442," dated August 11, 2025 (USA Lee Long CF-28 Response – VM Industry); *see also* USA Lee Long's CF-28 Response, "CF28 Redactions for Entry 4385," dated August 11, 2025 (USA Lee Long CF-28 Response – PET).

¹¹ *See* CBP Memorandum, "Adding Information to the Administrative Record of EAPA 8164," dated June 12, 2025 (June 12 Memorandum); *see also* CBP Memorandum, "Adding Information to the Administrative Record of EAPA 8164," dated June 16, 2025.

After evaluating the record's information, CBP determined that reasonable suspicion existed that the Importers entered Chinese-origin OCTG and SLP pipe into the United States that was transshipped through Thailand.¹² This information included the following:

1. The combined AD/CVD, Section 301, and Section 232 duties of 188 percent on SLP pipe from China indicate that Chinese producers have an economic incentive to transship their merchandise through third countries, such as Thailand.¹³
2. During EAPA 7890, PET surreptitiously altered raw material documents to try to substantiate its OCTG production in Thailand.¹⁴ However, CBP discovered during verification that PET had minimal OCTG production.¹⁵ These facts cast doubt on PET's SLP pipe production because PET claimed its facility also produced SLP pipe.¹⁶
3. CBP found in its February 24, 2025, determination for EAPA 7890 that PET acted as a transshipment point for Chinese-origin OCTG that entered the United States during the period of investigation (POI), February 1, 2023 to February 17, 2025.¹⁷
4. Amek's and USA Lee Long's CF-28 responses both stated that hollow steel billets were the raw material used to make the SLP pipe.¹⁸ In EAPA 7890, CBP determined that PET's OCTG ostensibly produced out of hollow steel billets from China were covered by the *OCTG AD/CVD Order*. Because PET's SLP pipe used hollow steel billets, a reasonable suspicion exists that PET's SLP pipe were covered by the *SLP AD/CVD Order*.
5. Leadtop and GME Trade Ease ostensibly imported drill pipe from PET.¹⁹ The *OCTG AD/CVD Orders* list drill pipe as an excluded product.²⁰ On September 27, 2024 and October 4, 2024, CBP conducted cargo exams on [[company name](#)]'s three imports from the Malaysian company MH Megah Maju Enterprise (MH Megah).²¹ These shipments contained OCTG from PET that was misclassified as drill pipe.²² On April 7, 2025, CBP performed a cargo exam on a GME Trade Ease shipment from VM Industry that contained "drill pipe" from PET.²³ CBP discovered this drill pipe was also misclassified OCTG.²⁴ As such, a reasonable suggestion existed that the drill pipe Leadtop and GME Trade Ease imported from PET and its trading company VM Industry was also misclassified OCTG.
6. GME Trade Ease's, GY Fleet's, Leadtop's, and USA Lee Long's CF-28 responses indicated that VM Industry exported PET's merchandise. Correspondingly, the cargo exam of GME Trade Ease's shipment from VM Industry showed that it contained PET merchandise.²⁵ Because VM Industry exported PET's merchandise and a reasonable

¹² See Letter from CBP, "Notice of Initiation of Investigation and Interim Measures - EAPA Cons. Case 8164," dated June 18, 2025 (NOI).

¹³ See Allegations at 7 and Exhibit 1.

¹⁴ *Id.* at Exhibit 4, pages 12-18.

¹⁵ *Id.* at Exhibit 5; *see also* June 12 Memorandum at Attachment 4.

¹⁶ See Allegations at Exhibits 5-6.

¹⁷ See June 12 Memorandum at Attachment 4.

¹⁸ See Amek CF-28 Response; *see also* USA Lee Long CF-28 Response – PET; *see also* NOI at 10.

¹⁹ See Leadtop Allegation at Exhibit 3; *see also* June 12 Memorandum at Attachments 1-2.

²⁰ See *OCTG AD/CVD Orders*.

²¹ See June 12 Memorandum at Attachments 5-7.

²² See NOI at 14-15.

²³ *Id.* at 14.

²⁴ *Id.*

²⁵ *Id.*

suspicion exists that merchandise from PET was entered through evasion, a reasonable suspicion exists that merchandise from VM Industry was also entered through evasion.

7. APP's CF-28 response did not provide most of the documents CBP requested concerning its entries from TSP.²⁶ As such, APP did not substantiate the type of merchandise in these entries, nor did it substantiate that the merchandise originated in Thailand.

Consequently, on June 18, 2025, CBP issued a notice of initiation of investigation and interim measures to the Importers and the Allegor.²⁷ This notice informed the Allegor and the Importers of the initiation of the investigation and of CBP's decision to impose interim measures on their entries based on a reasonable suspicion of evasion.²⁸ The notice also informed the Allegor and the Importers that the entries covered by the investigation are those entered for consumption, or withdrawn from warehouse for consumption, from February 24, 2024, through the pendency of this investigation.²⁹ As part of interim measures, CBP suspended the Importers' entries that entered after the initiation of the investigation pursuant to its authority under 19 U.S.C. § 1517(e).

CBP issued requests for information (RFI) to the Importers and to the exporters PET, TSP, VM Industry, and Soap Steel Co., Ltd. (Soap Steel).³⁰ Amek, APP, TSP, and USA Lee Long responded to the RFIs; however, GY Fleet, PET, Soap Steel, and VM Industry did not respond to CBP's RFIs.³¹ Leadtop and GME Trade Ease initially provided RFIs designated as business

²⁶ See APP CF-28 Responses at Exhibit 1.

²⁷ See NOI; *see also* CBP Email, "CBP EAPA Investigation 8164 - Notice of Initiation of Investigation and Interim Measures," dated June 12, 2026 in which CBP first notified the parties to the investigation of the investigation and interim measures.

²⁸ *Id.*; *see also* 19 U.S.C. § 1517(e); *see also* 19 C.F.R. § 165.24.

²⁹ See 19 C.F.R. § 165.2. The period of investigation (POI) covers entries up to one year prior to the date CBP officially received the Allegations.

³⁰ See Letter from CBP to Amek, "EAPA 8164 - Request for Information from Amek Aluminum & Stainless, Inc.," dated June 18, 2025; *see also* Letter from CBP to APP, "EAPA 8164 - Request for Information from American Piping Products, Inc.," dated June 18, 2025; *see also* Letter from CBP to GME Trade Ease, "EAPA 8164 - Request for Information from GME Trade Ease," dated June 18, 2025; *see also* Letter from CBP to GY Fleet, "EAPA 8164 - Request for Information from GY Fleet, Inc.," dated June 18, 2025; *see also* Letter from CBP to Leadtop, "EAPA 8164 - Request for Information from Leadtop Inc.," June 18, 2025; *see also* Letter from CBP to PET, "EAPA 8164 - Request for Information from Petroleum Equipment (Thailand), Ltd.," dated June 18, 2025; *see also* Letter from CBP to Soap Steel, "EAPA 8164 - Request for Information from Soap Steel Co., Ltd.," dated June 18, 2025; *see also* Letter from CBP to TSP, "EAPA 8164 - Request for Information from TSP Precision Steel Tube Manufacturing (Thailand) Co., Ltd.," dated June 18, 2025; *see also* Letter from CBP to USA Lee Long, "EAPA 8164 - Request for Information from USA Lee Long Inc.," dated June 18, 2025; *see also* Letter from CBP to VM Industry, "EAPA 8164 - Request for Information from VM Industry Co., Ltd.," dated June 18, 2025; *see also* Letter from CBP to USA Lee Long, "EAPA 8164 - Request for Information from USA Lee Long Inc.," dated August 4, 2025; *see also* Letter from CBP to Amek, "EAPA 8164 - Request for Information from Amek Aluminum & Stainless, Inc.," dated August 22, 2025; *see also* Letter from CBP to APP, "EAPA 8164 - Request for Information from American Piping Products, Inc.," dated August 22, 2025; *see also* Letter from CBP to TSP, "EAPA 8164 - Request for Information from TSP Precision Steel Tube Manufacturing (Thailand) Co., Ltd.," dated August 22, 2025; *see also* Letter from CBP to USA Lee Long, "EAPA 8164 - Request for Information from USA Lee Long Inc.," dated August 22, 2025.

³¹ See Letter from TSP, "Response to Request for Information," dated July 1, 2025 (TSP RFI); *see also* Letter from Amek, "Response to Request for Information dated June 18, 2025," dated July 23, 2025 (Amek RFI); *see also* Letter from APP, "American Piping Products, Inc.'s Response to Request for Information," dated July 23, 2025 (APP RFI); *see also* Letter from USA Lee Long, "Response to Request for Information dated June 18, 2025," dated July 28, 2025 (USA Lee Long RFI); *see also* Letter from USA Lee Long, "Response to Request for Information dated

confidential versions; however, they did not bracket business confidential information in those documents and did not provide public versions.³² CBP asked Leadtop and GME Trade Ease multiple times to amend their RFI responses and provide public versions; however, Leadtop and GME Trade Ease did not respond to CBP's requests.³³ As such, CBP rejected Leadtop's and GME Trade Ease's RFI responses as nonconforming submissions in accordance with 19 C.F.R. § 165.4(b).³⁴

On August 4, 2025, CBP extended the investigation's deadline to make a determination as to evasion until March 9, 2026.³⁵ CBP officials conducted a verification in Thailand at TSP's facility from December 8, 2025 to December 11, 2025.³⁶ CBP also added five additional memoranda to the case record composed of entry documents, cargo exam photographs, emails, website screenshots, EAPA 7890 documents, and a request for parties to comment on the valuation of a GY Fleet entry.³⁷ On February 6, 2026, Amek, APP, USA Lee Long, and the Alleger submitted written arguments.³⁸ APP and the Alleger submitted responses to written arguments on February 23, 2026.³⁹

Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion in this case, CBP must "make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion." Evasion is

August 4, 2025," dated August 11, 2025 (USA Lee Long SRFI); *see also* Letter from TSP, "Response to Request for Information," dated September 4, 2025 (TSP SRFI); *see also* Letter from Amek, "Response to Supplemental Request for Information," dated September 11, 2025; *see also* Letter from APP, "American Piping Products, Inc.'s Response to Supplemental Request for Information," dated September 15, 2025; *see also* Letter from USA Lee Long, "Response to Supplemental Request for Information dated August 22, 2025," dated September 24, 2025 (USA Lee Long SRFI 2); *see also* September 24 Memorandum at Attachments 11-14, 17-19. CBP also mailed physical copies of the RFIs to PET, Soap Steel, and VM Industry; however, CBP did not receive any response from them. *See also* September 24 Memorandum at Attachment 10.

³² *See* CBP Emails to Leadtop Regarding Bracketing Issues, dated August 1, 2025; *see also* CBP Emails to GME Trade Ease Regarding Bracketing Issues, dated August 1, 2025.

³³ *Id.*

³⁴ *Id.*

³⁵ *See* Letter from CBP, "Notice of Extension of Final Determination," dated August 4, 2025, in accordance with 19 U.S.C. § 1517(c)(1)(B) and 19 C.F.R. § 165.22(c). CBP issues the determination notice five business days after the determination decision. *See* 19 C.F.R. § 165.27(b).

³⁶ *See* CBP Memorandum, "On-Site Verification Report," dated January 20, 2026 (Verification Report).

³⁷ *See* September 24 Memorandum; *see also* CBP Memorandum, "Request from Parties to the Investigation for Comment on Valuation," dated September 25, 2025 (September 25 Memorandum); *see also* CBP Memorandum, "Adding Information to the Administrative Record of EAPA 8164," dated November 7, 2025 (November Memorandum); *see also* December Memorandum; *see also* CBP Memorandum, "Adding Information to the Administrative Record of EAPA 8164," dated January 20, 2026 (January Memorandum).

³⁸ *See* Letter from Amek, "Amek Aluminum & Stainless, Inc.'s Written Argument," dated February 6, 2026 (Amek Written Arguments); *see also* Letter from APP, "American Piping Products, Inc.'s Submission of Voluntary Written Arguments," dated February 6, 2026 (APP Written Arguments); *see also* Letter from USA Lee Long, "USA Lee Long Inc. Written Argument," dated February 6, 2026 (USA Lee Long Written Arguments); *see also* Letter from the Alleger, "Submission of Written Argument," dated February 6, 2026 (Alleger Written Arguments).

³⁹ *See* Letter from APP, "American Piping Products, Inc.'s Response to Written Arguments," dated February 23, 2026 (APP Response to Written Arguments); *see also* Letter from the Alleger, "Response to Written Argument," dated February 23, 2026 (Alleger Response to Written Arguments).

defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material and that results in any cash deposit or other security of any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”⁴⁰ As discussed below, substantial evidence on the record indicates that the Importers entered Chinese-origin OCTG and Chinese-origin SLP pipe through evasion.

PET

PET was registered in Thailand in 2012 under its original name, OST Tube (Thailand) Co., Ltd.⁴¹ PET is [description] by its general manager Henry Wang (also known as Wang Wei) and two other entities.⁴² CBP determined PET facilitated the transshipment of Chinese-origin OCTG through its Thai facility during EAPA 7890’s February 1, 2023 to February 17, 2025 POI, which substantially overlaps this investigation’s February 24, 2024 to March 9, 2026 POI.⁴³

PET claimed during EAPA 7890’s verification and on its website that it produced SLP pipe in its facility in addition to OCTG.⁴⁴ Regarding OCTG and SLP pipe production, GME Trade Ease’s and GY Fleet’s CF-28 responses each provided PET’s OCTG production flow chart concerning their SLP pipe entries from PET.⁴⁵ At no point during this investigation did CBP receive a production process flow chart for SLP pipe. Similarly, PET provided the [description] to the U.S. Department of Commerce (Commerce) in response to an anti-circumvention inquiry question on PET’s [process description].⁴⁶ PET explained to Commerce that “[process description]

⁴⁰ See 19 C.F.R. § 165.1; *see also* 19 U.S.C. § 1517(a)(5)(A). According to 19 U.S.C. § 1517(a)(3), “The term ‘covered merchandise’ means merchandise that is subject to— (A) an antidumping duty order issued under section 1673e of this title; or (B) a countervailing duty order issued under section 1671e of this title.”

⁴¹ See September 24 Memorandum at Attachment 39, pages 27, 70, 99. OST Tube (Thailand) Co., Ltd (OST) changed its name to PET in August 2018. PET is likely affiliated with the similarly-named Oil Steel Tube (Thailand) Co., Ltd (Oil Steel Tube). First, Oil Steel Tube appears to merely spell out OST’s initials. Second, Oil Steel Tube’s company stamp is “[name]” and its website was [website]. Third, PET employees [description of event]

[]. During EAPA 7890’s verification, PET confirmed that PET owner and general manager Henry (Wei) Wang worked for Oil Steel Tube. Fourth, TSPGA LLC imported from PET and [company name] and stated, “OST Thailand and Oil Steel Tube (Thailand) are the same company.” *Id.* at Attachment 8, page 16; Attachment 39, pages 32, 71; Attachment 41, page 4; Attachment 42, page 32; and Attachment 45; *see also* November Memorandum at Attachment 6; *see also* December Memorandum at Attachment 3 for additional information.

⁴² See Leadtop CF-28 Response – PET at 5; *see also* September 24 Memorandum at Attachment 39, pages 24, 32, and Attachment 40, page 29.

⁴³ See September 24 Memorandum at Attachment 42; *see also* 19 C.F.R. § 165.12; *see also* Official Receipt.

⁴⁴ See Allegations at Exhibit 6, pages 2, 5; *see also* September 24 Memorandum at Attachment 41, page 4. PET claimed it produced line pipe, which is the “L” in SLP pipe.

⁴⁵ See GME Trade Ease CF-28 Response at 40-42; *see also* GY Fleet CF-28 Response at 90-94. The production flow chart in each response does not explicitly state it is an OCTG production flow chart, but it twice refers to “API SPEC 5CT,” which is an OCTG specification but not an SLP pipe specification.

⁴⁶ See September 24 Memorandum at Attachment 44, pages 59, 61-66. Although not indicated in its title, the [description of event]

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].”⁴⁷ Thus, record evidence indicates that OCTG and SLP pipe use the same production process.

OCTG and SLP pipe used the same “raw material” input as well. PET stated during EAPA 7890 that it used hollow steel billets from China, as opposed to solid steel billets, as its main input in [#] percent of its OCTG.⁴⁸ During its Commerce proceeding, PET acknowledged it [process description] as well.⁴⁹ Amek’s and USA Lee Long’s CF-28 responses in this investigation also indicated PET used hollow steel billets from China in its SLP pipe.⁵⁰ PET’s hollow steel billets from China had the same [#] chemical composition regardless of whether PET used them in its OCTG or SLP pipe.⁵¹ Thus, PET’s SLP pipe and OCTG used the same hollow steel billets.

In EAPA 7890’s determination, CBP found that the physical characteristics of PET’s hollow steel billets placed them firmly within the scope of *OCTG AD/CVD Orders*.⁵² Further, CBP found that PET’s purported production on them did not change their country of origin from China to Thailand.⁵³ Additionally, PET did not perform as many production steps on these hollow steel billets as it claimed to perform.⁵⁴ PET claimed it altered the hollow steel billets’ [product description] but CBP discovered during verification that it did not have the machinery to do so to until after [date].⁵⁵ Specifically, PET was missing the [process description].”⁵⁶ As such, many of the hollow steel billets PET imported from China had the same [product description], and net weight as the OCTG it exported, which corroborates that PET did not perform all the production steps it claimed to perform.⁵⁷

It is noteworthy that this investigation’s POI began February 24, 2024, but PET did not have the machinery to alter the hollow steel billets’ [product description] until sometime after [date].⁵⁸ Thus, PET could not alter the SLP Pipe’s [product description] during at least the first [#] months of this investigation’s POI and so the [

⁴⁷ *Id.*

⁴⁸ *Id.* at Attachment 42, pages 27-28. PET estimated during verification that it used hollow steel billets from China on [#] percent of its OCTG. *Id.* at Attachment 41, page 5.

⁴⁹ *Id.* at Attachment 44, pages 61, 63. Descriptions of hollow steel billets being used in PET’s OCTG can be found in Attachment 41, pages 5-6, and Attachment 42, pages 21-22.

⁵⁰ See NOI at 10; see also Amek CF-28 Response at 5, 105-112, 115-117; see also USA Lee Long CF-28 Response – PET at 11, 143-162.

⁵¹ See September 24 Memorandum at Attachment 41, page 5; see also Amek CF-28 Response at 137-140. PET told CBP during the EAPA 7890 verification that “{b}oth hollow steel billets and solid round billets are produced in China and are of the same chemical composition, [#],” which indicates that the hollow steel billets denoted on some documents as [#] may have omitted the [#] portion.

⁵² See September 24 Memorandum at Attachment 42, page 22.

⁵³ *Id.* at Attachment 42, pages 22, 25-28, 50, 53.

⁵⁴ *Id.* at Attachment 42, page 27.

⁵⁵ *Id.* at Attachment 41, pages 6, 8, 17-18, and Attachment 42, pages 25-28.

⁵⁶ *Id.*

⁵⁷ *Id.* at Attachment 42, pages 24-25.

⁵⁸ *Id.* at Attachment 41, pages 8, 17-18, 37. PET provided a video of its facility dated [date and product] were missing from the video. However, the [description] were present when CBP visited PET’s facility in October 28-November 1, 2024. PET claimed that the [description] were needed to alter the hollow steel billets’ [description].

product description] was the same as when it was exported to Thailand from China. Because PET claimed to perform the [description] for its OCTG and SLP pipe, this corroborates that it did not perform all the production steps it claimed to perform on its SLP pipe.

PET also consumed an abnormally low amount of electricity during EAPA 7890's POI.⁵⁹ This indicates that during EAPA 7890's POI, PET did not use its machinery much on its OCTG and SLP pipe. Record evidence indicates PET has most likely not used its machinery much since then. The chart below shows that the outer diameters, wall thicknesses, and net weights of the hollow steel billets PET imported from China match the outer diameters, wall thicknesses, and net weights of the SLP pipe PET exported to Amek, APP, and USA Lee Long. In other words, PET did not use any machinery to alter the hollow steel billets/SLP pipe's outer diameter, wall thickness, or weight. These unchanged outer diameters, wall thicknesses, and net weights are consistent with PET's abnormally low electricity consumption and with it facilitating the transshipment of Chinese-origin SLP pipe.

Figure 1: PET's Imported Hollow Steel Billets Compared to its Exported SLP Pipe

COO	Arrival Date in TH	OD (mm)	WT (mm)	NW (mt)	PET's Export Date	OD (mm)	WT (mm)	NW (mt)	Importer	Source
									Amek	60
									APP	61
									APP	62
									APP	63
									APP	64
									APP	65
									APP	66
									APP	67
									APP	68
									APP	69
									APP	70
									APP	71
									USA Lee Long	72
									USA Lee Long	73
									USA Lee Long	74
									USA Lee Long	75

COO = Country of Origin, TH = Thailand, OD = Outer Diameter, WT = Wall Thickness, NW = Net Weight, mt = Metric Tons
Some figures in the OD, WT, and NW columns have been rounded.

⁵⁹ *Id.* at Attachment 42, pages 24-25. "PET consumed only about \$[#] of electricity for every metric ton of OCTG and line pipe it produced in 2023."

⁶⁰ *Id.* at Attachment 39, page 339; *see also* Amek RFI at Exhibit V.19.

⁶¹ *See* September 24 Memorandum at Attachment 39, page 342; *see also* APP RFI at Exhibit Entry-1.

⁶² *Id.*

⁶³ *Id.*

⁶⁴ *Id.*

⁶⁵ *Id.*

⁶⁶ *See* September 24 Memorandum at Attachment 39, page 344; *see also* APP RFI at Exhibit Entry-4.

⁶⁷ *Id.*

⁶⁸ *See* September 24 Memorandum at Attachment 39, page 344; *see also* APP RFI at Exhibit Entry-5. The dimensions were listed as [], which has been converted to metric here.

⁶⁹ *See* September 24 Memorandum at Attachment 39, page 346; *see also* APP RFI at Exhibit Entry-8.

⁷⁰ *See* September 24 Memorandum at Attachment 39, page 345; *see also* APP RFI at Exhibit Entry-9.

⁷¹ *See* September 24 Memorandum at Attachment 39, page 347; *see also* APP RFI at Exhibit Entry-11.

⁷² *See* September 24 Memorandum at Attachment 39, page 349; *see also* USA Lee Long RFI at Exhibit V.18.1.

⁷³ *Id.*

⁷⁴ *Id.*

⁷⁵ *Id.*

Regardless of how much production PET actually performs, the physical characteristics of the Chinese hollow steel billets PET used in OCTG during this investigation's POI still places them within the scope of the *OCTG AD/CVD Orders* for the same reasons CBP outlined in its EAPA 7890 determination.⁷⁶ The physical characteristics of the hollow steel billets – they are [description], made out of steel, of circular cross-section, hollow in the middle, and measure less than 406.4 mm in outside diameter – also place them within the scope of the *SLP AD/CVD Orders*.⁷⁷ Nothing on the record indicates that these hollow steel billets met the *SLP AD/CVD Order*'s exclusions on pipes meeting aerospace, hydraulic, and bearing tubing specifications; pipes meeting ASTM A-335's chemical requirements, whether finished or unfinished; unattached couplings; mechanical, boiler, condenser and heat exchange tubing, except when such products conform to the dimensional requirements, *i.e.*, outside diameter and wall thickness of ASTM A-53, ASTM A-106 or API 5L specifications. Thus, the physical characteristics of the hollow steel billets PET imported from China demonstrate that they are Chinese-origin SLP pipe covered by the *SLP AD/CVD Orders* and Chinese-origin OCTG covered by the *OCTG AD/CVD Orders*.⁷⁸

During EAPA 7890, PET claimed that it sometimes used solid steel billets from [place] to produce OCTG.⁷⁹ During this investigation, some of the Importers likewise claimed PET used solid steel billets from [] to produce their entries' SLP pipe.⁸⁰ However, during EAPA 7890, CBP caught PET creating fraudulent documents for those solid steel billets:

PET provided surreptitiously copied raw material documents to give CBP the impression that it only used [product description] in its OCTG production. PET provided sales contracts, invoices, packing lists, proofs of payments, Thai import declarations, and mill test certificates ostensibly pertaining to the raw materials used to produce Amek's, Centric Pipe's, LE Commodities', and TSPGA's {four of the importers CBP investigated in EAPA 7890} merchandise. However, as extensively described in the NOI, each set of these documents contained numerous matching fields indicating that one set of documents was copied from the other. PET then changed the dates, so they occurred before each entry's export date. The intended effect was to give CBP the impression that PET received more raw material shipments from [place] than it actually did and that it only used [product description] to produce its OCTG.⁸¹

PET provided many of these same [description] raw material documents during this investigation to USA Lee Long and Leadtop for their CF-28 responses. Their CF-28 responses provided

⁷⁶ See September 24 Memorandum at Attachment 42, page 22. Some of these reasons included CBP officials' observations of PET's hollow steel billets during EAPA 7890's verification and that photographs PET provided confirm they were of circular cross-section and hollow in the middle. Additionally, as noted in the name, hollow steel billets are a steel product. *Id.* at Attachment 40, page 27; Exhibit 39; Attachment 41, pages 5, 31; and Attachment 42, page 22.

⁷⁷ *Id.* at Attachment 39, pages 337, 339, 341, 356, *etc.*; Attachment 40, page 27 and Exhibit 39; Attachment 41, pages 5, 31; and Attachment 42.

⁷⁸ See *SLP AD/CVD Orders*; see also *OCTG AD/CVD Orders*.

⁷⁹ See September 24 Memorandum at Attachment 42, page 27, footnote 218. PET implicitly claimed they used [quantity] percent of their OCTG.

⁸⁰ See Leadtop CF-28 Response – PET at 4; see also Leadtop CF-28 Response – VM Industry at 4; see also USA Lee Long CF-28 Response – VM Industry; see also NOI at 11.

⁸¹ See September 24 Memorandum at Attachment 39, pages 26-27.

identical sales contracts, invoices, packing lists, and two proofs of payment concerning solid steel billets that [companies] later sold to PET.⁸² PET provided the same sales contract, invoice, packing list, and two proofs of payment to Amek for its CF-28 response during EAPA 7890.⁸³ The chart below lists the entries in which PET supplied these raw material documents to the importers for their CF-28 responses to CBP.

Figure 2: Entries Providing the Same Raw Material Documents					
Importer	Exporter	EAPA Inv.	Export Date	Entry Number	Entry Weight ⁸⁴
Amek	PET	7890	]2023]2024]2024]2024]2024]2024]2024	]9168]6940]8910]1625]4393]9442	]mt]mt]mt]mt]mt]mt]mt
Leadtop	VM Industry	8164			
Leadtop	VM Industry	8164			
Leadtop	PET	8164			
USA Lee Long	VM Industry	8164			
USA Lee Long	VM Industry	8164			
Total Weight					

The combined weight of these entries was [#] mt.⁸⁵ However, the [description] raw material documents provided for these entries (invoice, packing list, and Thai import declaration) indicate PET purchased and imported only [#] mt of solid steel billets from [place] for Figure 2's entries.⁸⁶ Amek's, Leadtop's, and USA Lee Long's CF-28 responses did not indicate the existence of any additional raw materials underlying those entries.⁸⁷ As such, PET ostensibly appeared to consume all the [description] raw materials it purchased and did not account for the remaining [#] mt of raw materials.

PET exported the last of Amek's, Leadtop's, and USA Lee Long's entries in Figure 2 from Thailand on [date].⁸⁸ However, during EAPA 7890's October 2024 verification, CBP took photographs at PET's facility of some of the same [description] raw materials purportedly used in Figure 2's entries. Those photographs showed [product description], which is the same purchase order number listed on the raw material sales contract, invoice, packing list, proofs of payment, and Thai import declarations that Amek, Leadtop, and USA Lee Long provided for Figure 2's

⁸² *Id.*; see also USA Lee Long CF-28 Response – VM Industry; see also Leadtop CF-28 Response – VM Industry; see also Leadtop CF-28 Response – PET. Leadtop's PET response contained all these documents except the two proofs of payment. Also, PET would have supplied these all the raw material documents to USA Lee Long and Leadtop because those are the kinds of documents an importer would need to obtain from its supplier.

⁸³ See June 12 Memorandum at Attachment 9, pages 48-53. That was entry []9168.

⁸⁴ *Id.* at Attachment 9, page 16, and Attachment 10.

⁸⁵ *Id.* at Attachment 9; see also Leadtop CF-28 Response – VM Industry; see also Leadtop CF-28 Response – PET; see also USA Lee Long CF-28 Response – VM Industry.

⁸⁶ *Id.*; see also June 12 Memorandum at Attachment 9, page 54.

⁸⁷ See USA Lee Long CF-28 Response – VM Industry; see also Leadtop CF-28 Response – VM Industry; see also Leadtop CF-28 Response – PET; see also June 12 Memorandum at Attachment 9.

⁸⁸ See September 24 Memorandum at Attachment 2.

entries.⁸⁹ This indicates PET did not consume all the [description] raw materials.⁹⁰ Because PET surreptitiously copied the same raw material documents during EAPA 7890, PET appears to have used the [description] raw material documents for Figure 2's entries to give CBP the false impression that the merchandise reported on the entry was produced using [description] raw materials.

PET has resorted to deceptive tactics in multiple other instances, which casts doubt on the veracity of documents originating from them. In one instance, PET falsely claimed it altered the [product description].⁹¹ However, EAPA 7890's determination stated

PET averred that it purchased these [product and year] and had not purchased or upgraded any machinery, including the [product], since 2023. However, these [product] were not present in a video PET provided to CBP and that was taken at its facility on [date]. In other words, the [process explanation] were not installed by [date]. Because CBP officials viewed these [product] during their October 28-November 1, 2024 verification of PET's facility, PET installed these [product] sometime during the [#] months between [date] and October 28, 2024 and not in [year].⁹²

As such, PET could not change the [product description] of the hollow steel billets it imported from China before [date] and so made a false statement concerning the purchase date of its [product].⁹³

In another instance from EAPA 7890's verification, CBP asked that one of the PET employees listed on the mill test certificates, [name], perform testing.⁹⁴ PET instead had [name] perform testing and claimed [name] was his Thai name.⁹⁵ CBP asked [name] to sign his name as [name] but the signature did not match the handwriting of [name]'s signature on the record mill certificates.⁹⁶ Moreover, [name and titles]

[name].⁹⁷ Therefore, evidence indicates they are two separate people, and so PET made a false statement about [names]. Additionally, PET did not cooperate with CBP's request for [name] to perform testing.

⁸⁹ *Id.* at Attachment 38; *see also* June 12 Memorandum at Attachment 9, pages 48-53; *see also* Leadtop CF-28 Response – VM Industry; *see also* Leadtop CF-28 Response – PET; *see also* USA Lee Long CF-28 Response – VM Industry.

⁹⁰ PET claimed its facility processed both OCTG and SLP Pipe (aka line pipe). Additionally, record evidence indicated that OCTG and SLP pipe both used the same hollow steel billets. *See* September 24 Memorandum at Attachment 41, pages 4-5; *see also* NOI at 10; *see also* Amek CF-28 Response at 5, 105-112, 115-117; *see also* USA Lee Long CF-28 Response – PET at 11, 143-162.

⁹¹ *See* September 24 Memorandum at Attachment 42, page 25.

⁹² *Id.* at Attachment 42, pages 25-26.

⁹³ *Id.* at Attachment 42, page 26.

⁹⁴ *Id.* at Attachment 42, page 42.

⁹⁵ *Id.*

⁹⁶ *Id.*

⁹⁷ *Id.*

PET also made false statements concerning its affiliates during EAPA 7890. Initially PET stated its only affiliate was [company name]; however, PET later indicated it was also affiliated with the [company name].⁹⁸ PET also denied being affiliated with OST Group (North America), Inc.; however, record evidence indicated PET was affiliated with them before PET changed its name from OST Tube (Thailand) Co., Ltd.⁹⁹

Finally, during EAPA 7890's verification, CBP asked PET multiple times to provide a list of its recent sales to customers between June 2024 to October 2024.¹⁰⁰ However, PET refused to provide this information and so concealed material evidence.¹⁰¹ PET concealed that information because it had begun exporting its merchandise under other company names to obscure the merchandise's origin.¹⁰²

VM Industry

VM Industry was one of the first company names PET used to obscure the origin of its merchandise. VM Industry's first export to the United States contained PET's merchandise and departed Thailand on [date], 2024, which was during the timeframe of the list of sales that PET refused to disclose.¹⁰³ Additionally, VM Industry's first export departed only [#] days after CBP announced EAPA 7890 on May 23, 2024.¹⁰⁴ Thus, the timeline of VM Industry's first export to the United States was the first of several indicators that PET used VM Industry's name to obscure the origin of the merchandise.

VM Industry did not respond to CBP's RFIs; nevertheless, Leadtop and GME Trade Ease both stated "{a}s a trader, after {VM Industry} received the order, VM looked for Petroleum Equipment Thailand Co., Ltd. (PET) as the manufacturer{.}"¹⁰⁵ However, it is unlikely VM Industry received OCTG or SLP pipe orders from customers because it did not previously sell that kind of merchandise from the time of its 2012 registration in Thailand until its first export on [date], 2024.¹⁰⁶ According to a business information website, VM Industry was engaged in "{w}holesale of household goods made from textiles" and trades "materials, equipment,

⁹⁸ *Id.* at Attachment 42, pages 30-31.

⁹⁹ *Id.* at Attachment 42, pages 32-33.

¹⁰⁰ *Id.* at Attachment 41, page 18.

¹⁰¹ *Id.*

¹⁰² *Id.* at Attachment 2; *see also* June 12 Memorandum at Attachments 5-7.

¹⁰³ *See* September 24 Memorandum at Attachment 2; *see also* NOI at 11; *see also* USA Lee Long CF-28 Response – VM Industry; *see also* Allegations at Exhibit 4. VM Industry's first export to the United States was USA Lee Long entry [#]9442. USA Lee Long provided [description] issued for the shipment and stated VM Industry exported PET's merchandise to them.

¹⁰⁴ *Id.* This announcement occurred via a May 23, 2024 email to EAPA 7890's importers. CBP then issued its NOI on May 31, 2024 and placed the public version of it on its website.

¹⁰⁵ *See* GME Trade Ease CF-28 Response; *see also* Leadtop CF-28 Response – VM Industry.

¹⁰⁶ *See* September 24 Memorandum at Attachments 2, 15-16. VM Industry is in the southeastern area (Samut Prakan) of metropolitan Bangkok and was registered in Thailand in February 2012. VM Industry also shares the same Thai business registration number as Luxy Import Export Corporation Company Limited. A Dun & Bradstreet report indicated it is owned by [company description] and its director is [name]. *Id.* at Attachments 15-16.

curtains, carpets.”¹⁰⁷ A Dun & Bradstreet report stated it was involved in “[[products](#)] { . } ”¹⁰⁸ Thus, VM Industry sold other kinds of merchandise, and so it is more likely PET received the customer orders and then sought out VM Industry to use its name to obscure the origin of the merchandise. Additionally, if VM Industry received a customer’s OCTG or SLP pipe order, VM Industry would probably have instructed the importer to [[description](#)]. However, several VM Industry invoices instructed customers to pay [[description](#)] instead.¹⁰⁹

Record evidence indicates VM Industry only exported PET’s merchandise to the United States. USA Lee Long, Leadtop, GME Trade Ease, and GY Fleet provided CF-28 responses pertaining to six entries from VM Industry.¹¹⁰ These entries only contained PET-related documents, such as a production process flow chart, documents for several production steps, and raw material payment documents.¹¹¹ Other entries from VM Industry contained [[phone number description of paperwork](#)

].¹¹² Further, CBP’s cargo exam on GME Trade Ease entry [<#>]8045 from VM Industry revealed [[product description](#)] the pipes.¹¹³ In sum, no information on the record indicated VM Industry exported merchandise from any company other than PET.

On June 12, 2025, CBP announced EAPA 8164’s investigation to the parties to the investigation and indicated it was investigating entries from VM Industry.¹¹⁴ As such, PET stopped using VM Industry’s name to export its merchandise, and the last shipment from VM Industry arrived in the United States on [[date](#)], 2025.¹¹⁵

Soap Steel

The timeline of Soap Steel’s registration and first export indicates it was set up to export PET’s merchandise. Soap Steel was registered in Thailand on December 16, 2024, only 10 days after CBP released its verification report detailing PET’s misrepresentation of its machinery and its refusal to provide a list of recent sales.¹¹⁶ On February 24, 2025, CBP issued its EAPA 7890 determination that PET facilitated the transshipment of Chinese-origin OCTG.¹¹⁷ Shortly thereafter, Soap Steel’s first of four exports to the United States departed Thailand on [[date](#)

¹⁰⁷ *Id.* at Attachment 15.

¹⁰⁸ *Id.*

¹⁰⁹ *Id.* at Attachments 45, pages 4, 12, 38; *see also* USA Lee Long RFI at 199, 207.

¹¹⁰ *See* Leadtop CF-28 Response – VM Industry; *see also* GME Trade Ease CF-28 Response; *see also* GY Fleet CF-28 Response; *see also* USA Lee Long CF-28 Response – VM Industry; *see also* June 12 Memorandum at Attachment 14, page 3.

¹¹¹ *Id.*

¹¹² *See* USA Lee Long RFI at 199, 201, 207, 209, 228-229, 234-235, 239-241, 261-262, 264, 277, 279-281.

¹¹³ *See* June 12 Memorandum at Attachment 8, pages 12, 17-18.

¹¹⁴ *See* CBP Email, “CBP EAPA Investigation 8164 - Notice of Initiation of Investigation and Interim Measures,” dated June 12, 2025.

¹¹⁵ *See* September 24 Memorandum at Attachment 2. This was GME Trade Ease entry [<#>]9136.

¹¹⁶ *Id.* at Attachment 9. Soap Steel’s director is listed as Wong Xian.

¹¹⁷ *Id.* at Attachment 42.

], 2025.¹¹⁸ These four shipments arrived in the United States during [months] 2025, which was while PET was also exporting its merchandise under VM Industry's name.¹¹⁹

The circumstances around Soap Steel's last shipment suggest that PET stopped using Soap Steel's name to export its merchandise after CBP began investigating Soap Steel in June 2025. Soap Steel initially exported a [date and product description

] USA Lee Long.¹²⁰ After this shipment departed Thailand, CBP issued an RFI to Soap Steel on June 18, 2025; however, Soap Steel did not respond to the RFI.¹²¹ The shipment subsequently arrived in the United States on [date and shipment information] than before.¹²² The broker explained that "[

description of company process

].¹²³

CBP performed a cargo exam on this shipment on July 23, 2025.¹²⁴ The cargo exam photographs show [shipment description

].¹²⁵ Because Soap Steel [], these references indicate Soap Steel exported PET's merchandise.¹²⁶

Energy Tubulars

Energy Tubulars Co. Ltd.'s (Energy Tubulars) first entry arrived in the United States on [date], 2025, [#] days after CBP announced it was investigating entries from VM Industry.¹²⁷ Energy Tubulars' address is near PET in Rayong, Thailand and it was registered in Thailand on December 12, 2024, which was four days before Soap Steel was registered and only six days after CBP released its verification report on PET.¹²⁸

¹¹⁸ *Id.* at Attachment 2; *see also* USA Lee Long SRFI 2 at 10. Soap Steel's first export was USA Lee Long entry [#]0903. Soap Steel exported all four of its shipments to USA Lee Long.

¹¹⁹ *See* September 24 Memorandum at Attachment 2.

¹²⁰ *Id.* at Attachments 2-3, 5.

¹²¹ *Id.* at Attachment 11.

¹²² *Id.* at Attachments 2-3.

¹²³ *Id.* at Attachment 5. The broker also explained that the shipment would be [process description].

¹²⁴ *Id.* at Attachment 3.

¹²⁵ *Id.*

¹²⁶ *Id.* at Attachments 3, 5.

¹²⁷ *See* CBP Email, "CBP EAPA Investigation 8164 - Notice of Initiation of Investigation and Interim Measures," dated June 12, 2025. This was also around the time VM Industry's last entry ([#]9813) arrived in the United States on [], 2025. *See* September 24 Memorandum at Attachment 2.

¹²⁸ *See* September 24 Memorandum at Attachments 1 and 41. This Energy Tubulars is in Thailand and is unrelated to the similarly named company in Texas.

Multiple pieces of evidence connect PET to Energy Tubulars. Energy Tubulars’ website listed the same telephone number (+66 886131848) and contact person (“Mr. Henry”) that PET’s website listed.¹²⁹ There is only one Henry that has worked for PET, Henry Wang, (also known as Wang Wei), who is an owner and general manager of PET.¹³⁰ Energy Tubulars’ invoices denoted [phone number] as its telephone number, which is a PET telephone number that Henry Wang used.¹³¹ Energy Tubulars’ website contained pictures of machinery, one of which said “PET Steel” on its upper left corner.¹³² Moreover, as of December 2025, the sign outside PET’s Thai facility had been updated so it listed both PET’s and Energy Tubular’s company names in Thai and the numerical portion of their addresses (*i.e.* 7/522 and 7/616) in the upper right corner.¹³³ Thus, this combined evidence indicates PET set up Energy Tubulars.



Record evidence also indicates PET used Energy Tubulars’ company name to obscure the origin of its merchandise. Several production documents with Energy Tubulars’ name in the header were provided to CBP.¹³⁴ These production documents listed the same production steps and used the same document format PET used in its production documents, as shown below.¹³⁵ These common elements show PET created Energy Tubulars’ production documents using the PET template. However, CBP notes that the existence of these production documents does not indicate that PET actually produced Thai-origin merchandise, which was shown by EAPA 7890’s determination and other evidence in this determination.¹³⁶

¹²⁹ *Id.* at Attachment 1. Energy Tubulars’ company profile on API’s website, packing lists issued by PET, and the narrative section of PET’s initial RFI response also listed PET’s phone number as +66 886131848. *Id.* at Attachments 39-40; *see also* Letter from the Allegor, “EAPA Consl. Case No. 8164, Seamless Standard, Line, and Pressure Pipe from China: Allegers’ Submission of Voluntary Factual Information,” dated September 30, 2025 (Allegor Voluntary Factual Information) at Exhibit 1, page 1.

¹³⁰ *See* Allegations at Exhibit 6, page 18; *see also* September 24 Memorandum at Attachment 20; Attachment 39, pages 24, 32; and Attachment 40, page 29. Additionally, documents sometimes referred to him as “Mr. Henry Wang.”

¹³¹ *See* September 24 Memorandum at Attachment 39, pages 24-25, and Attachment 45, pages 466, 483. VM Industry also used that PET telephone number as its main number. *Id.* at Attachment 13, page 2, and Attachment 45, pages 40, 44.

¹³² *See* Allegor Voluntary Factual Information at Exhibit 2, page 85.

¹³³ *See* January Memorandum at Attachment 4, pages 4-7, and Attachment 5.

¹³⁴ *See* November Memorandum at Attachment 1, pages 13-44.

¹³⁵ *Id.*; *see also, e.g.*, GY Fleet CF-28 Response at 8-89.

¹³⁶ *See* September 24 Memorandum at Attachment 42.

inspection record charts

[]

On July 23, 2025, CBP performed a cargo exam on an Energy Tubulars shipment of SLP pipe to Zesheng Steel.¹³⁷ []

[] to the pipes.¹³⁸ On September 15, 2025, CBP performed a cargo exam on another shipment from Energy Tubulars; it contained [product description] the pipes.¹³⁹ Thus, these facts demonstrate that PET exported its merchandise using Energy Tubulars' company name.

Siam Steel Materials

Record evidence from Siam Steel Materials Co., Ltd.'s (Siam Steel Materials) first three exports indicate it superseded Energy Tubulars as the company name PET used to export its merchandise. Siam Steel Materials ostensibly issued these three exports' invoices and packing lists; their overall format matches the format of Energy Tubulars entry [#]2677's invoices and packing lists.¹⁴⁰ For example, the column titles match as does the placement of the various fields (see comparison below). Their matching formats indicate a common source issued Energy Tubulars' and Siam Steel Materials' invoices and packing lists. Because PET set up Energy Tubulars and [], that indicates that PET issued Siam Steel Materials' invoices and packing lists.

¹³⁷ See September 24 Memorandum at Attachments 1, 3. This was Zesheng Steel entry [#]8585.

¹³⁸ *Id.* at Attachment 3, pages 9-14. [company process]. *Id.* at Attachment 5.

¹³⁹ *Id.* at Attachment 45, pages 468-505. This was [] entry [#]0283.

¹⁴⁰ *Id.* at Attachment 45; see also December Memorandum at Attachment 2. The first three entries from Siam Steel Materials were Honesty Build Inc entries []1892 and [#]6040 and [company name] entry [#]7527. [company names and process]

[]. As noted, a picture of Energy Tubulars' machinery stated "PET Steel" on it. Thus, this further ties Siam Steel Materials to Energy Tubulars and PET. See November Memorandum at Attachment 4, page 2; see also December Memorandum at Attachment 1, pages 1, 7, and Attachment 2, page 1.

customer invoices

[]

Furthermore, Siam Steel materials' invoices and packing lists denote an [description of invoice] Energy Tubulars used on its website (ettsteel-thai.com), email address (info.ettthai@gmail.com), and many of its [description].¹⁴¹ Using [description of product description]].¹⁴²

[product description] CBP observed during cargo exams of three Siam Steel Materials shipments, one of which was Siam Steel Materials' first export to the United States.¹⁴³ As such, Siam Steel Materials' exported merchandise was initially intended to be portrayed as Energy Tubulars' merchandise. Additionally, during a November 18, 2025 cargo exam, CBP observed "[product description] in another shipment from Siam Steel Materials.¹⁴⁴ Thus, the combined evidence indicates that Siam Steel Materials superseded Energy Tubulars as the company name PET exported its merchandise under.

Corroborating this, Siam Steel Materials was registered in Thailand on July 8, 2025.¹⁴⁵ Only [#] days later, on [date], 2025, Siam Steel Materials' first shipment departed from Thailand.¹⁴⁶ The shipment's invoice and packing list were dated just [#] days ([date], 2025) after Siam Steel Materials' registration.¹⁴⁷ As such, PET likely received the customer's

¹⁴¹ See September 24 Memorandum at Attachment 1, pages 1-2, and Attachment 45, pages 527-528, 537-538, 562-563, which show Siam Steel Materials' use of the [product description]. Pages 471-474, 493-494 show Energy Tubulars' use of the [invoice description] 0283.

¹⁴² See, e.g., September 24 Memorandum at Attachment 20, pages 4-5, and Attachment 45, pages 4-5, 12-13, 37-38; see also USA Lee Long RFI at 246-247, 253-254, 269-270; see also TSP RFI at 4-S-Q06-2346, pages 12-13.

¹⁴³ See November Memorandum at Attachment 2, pages 2-3, and Attachment 3, page 14; see also December Memorandum at Attachment 12, page 2. These cargo exams occurred on October 17, 2025; October 22, 2025; and November 13, 2025. Siam Steel Materials' first export was Honesty Build Inc entry [#]1892. The other two Siam Steel Materials shipments were to Goya Trading Inc and Honesty Build Inc. CBP asked for Honesty Build Inc's contact information and its [email address and contact information]]. See November

Memorandum at Attachment 3 and Attachment 4, pages 1, 3-4; see also September 24 Memorandum at Attachment 45, pages 534, 559.

¹⁴⁴ See December Memorandum at Attachment 13, pages 5-6. Siam Steel Materials exported this shipment to Goya Trading Inc.

¹⁴⁵ See September 24 Memorandum at Attachment 1. Siam Steel Materials' registered address is purportedly in Bangkok's Lat Krabang district and Thanyalan Setthachotdech was listed as its key principal.

¹⁴⁶ *Id.* at Attachment 45, pages 533, 536.

¹⁴⁷ *Id.* at Attachment 45, pages 537-538. This is entry []1892 from Siam Steel Materials.

order before the registration of Siam Steel Materials and intended to export it under Energy Tubulars' company name, [packing list description].

Also, connecting Siam Steel Materials to PET, the overall format of Siam Steel Materials' mill test certificate matches the format of PET's mill test certificates, as shown below.¹⁴⁸ Siam Steel Materials' mill test certificates also contain the [signature].¹⁴⁹ The [gnature] some of PET's mill test certificates as well.¹⁵⁰ The presence of the [] overall format on these mill test certificates indicates that PET filled out Siam Steel Materials' mill test certificates. Because PET filled out Siam Steel Materials' mill test certificates, that indicates that the shipments contained PET's merchandise.

mill test certificates

[]

Energy Industry

In August 2025, Energy Tubulars changed its name to Energy Industry Co., Ltd. (Energy Industry).¹⁵¹ As of December 2025, a new website was set up for Energy Industry, which was similar to Energy Tubulars' website.¹⁵² However, the Energy Industry website still contains PET's telephone number and pictures of machinery with "PET Steel" stenciled on them.¹⁵³

In December 2025, Energy Industry exported several shipments from Thailand to the United States.¹⁵⁴ The shipments' [product description] that Siam Steel Materials and Energy Tubulars used.¹⁵⁵ Energy Industry's mill test certificate from one of those shipments contains the same [name] signature that one of Siam Steel Materials' mill test certificates contains.¹⁵⁶ As noted, the [] has also appeared on PET's mill test

¹⁴⁸ *Id.* at Attachment 45, pages 475-482, 541-553.

¹⁴⁹ *Id.* at Attachment 45, pages 541-553.

¹⁵⁰ *Id.* at Attachment 45, pages 6, 14, 23. For example, [

entry description

].

As discussed elsewhere in this notice, this [name] entry contained PET's merchandise. *See* June 12 Memorandum at Attachment 7, pages 15-17.

¹⁵¹ *See* January Memorandum at Attachment 3, page 1.

¹⁵² *Id.* at Attachment 3, pages 3-7. Energy Industry's website is very similar Energy Tubular's website. *See* September 24 Memorandum at Attachment 1, pages 1-3; *see also* Allegor Voluntary Factual Information at Exhibit 2.

¹⁵³ *See* January Memorandum at Attachment 3, pages 5-6; *see also* September 24 Memorandum at Attachment 39, page 28. That PET telephone number is +66 886131848.

¹⁵⁴ *See* January Memorandum at Attachments 8-9, 12. These shipments were later re-exported.

¹⁵⁵ *Id.* at Attachment 12, pages 8, 15, 22-23, 28.

¹⁵⁶ *Id.* at Attachment 8, page 9; *see also* September 24 Memorandum at Attachment 45, page 542. It also contains a [name] signature, which also matches Siam Steel Materials' mill test certificate.

certificates.¹⁵⁷ Energy Industry's mill test certificate also lists PET's fax number and one of its telephone numbers.¹⁵⁸

mill test certificates

[]

Thunder Pipe

Thunder Pipe Co. Ltd's (Thunder Pipe) website states it was founded in 1988 and other business information websites indicate it was registered in Thailand in December 2016.¹⁵⁹ Thus, it appears to be a pre-existing company that PET did not create. Thunder Pipe's website indicates it produces steel pipes for furniture, automotive parts, and various construction industries and contains no mention of SLP Pipe, OCTG, other kinds of seamless pipes, or of any other product related to the oil and gas industry.¹⁶⁰

Thunder Pipe had not exported to the United States until, in December 2025, a shipment to the United States had its shipper name changed from [] to Thunder Pipe.¹⁶¹ The shipment's importer claimed this change occurred "[]" [event description](#) ¹⁶² However, the importer provided multiple items of PET's contact information in addition to other contact information not listed on Thunder Pipe's website:

- The importer provided to CBP one of PET's telephone numbers – [[phone number](#)] – as Thunder Pipe's telephone number. However, Thunder Pipe's website does not mention any of PET's telephone numbers and lists multiple other telephone numbers.¹⁶³

¹⁵⁷ See September 24 Memorandum at Attachment 45, pages 6, 14, 23.

¹⁵⁸ *Id.* at Attachment 20, page 4, and Attachment 39, page 28; *see also* January Memorandum at Attachment 9, page 9.

¹⁵⁹ See Letter from the Allegers, "Allegers' Submission of Factual Information in Response to CBP's Jan. 20th Memorandum," dated January 28, 2026 at 10 (Alleger Voluntary Factual Information 2); *see also* January Memorandum at Attachment 6.

¹⁶⁰ See Alleger Voluntary Factual Information 2 at 10, 13.

¹⁶¹ See January Memorandum at Attachment 6, pages 3-4, and Attachment 9, page 1.

¹⁶² *Id.* at Attachment 9, page 1.

¹⁶³ *Id.*; *see also* September 24 Memorandum at Attachment 39, page 24; *see also* Alleger Voluntary Factual Information 2 at 11.

- The importer claimed [email address] is Thunder Pipe’s main email address.¹⁶⁴ However, Thunder Pipe’s website denotes a different main email address, ThunderPipe99@gmail.com.¹⁶⁵
- The importer provided []’s name to CBP as Thunder Pipe’s contact name.¹⁶⁶ However, [name] is PET’s [position titles] and is also known as [].¹⁶⁷

The importer also provided a Thunder Pipe mill test certificate for the shipment that contained several notable features. First, some of the heat and lot numbers on Thunder Pipe’s mill test certificate (see above certificate comparison) continue where the heat and lot numbers on Energy Industry’s mill test certificate leave off.¹⁶⁸ This is consistent with the Thunder Pipe shipment’s [] to Thunder Pipe. Second, the mill test certificate follows one of the same formats as PET’s mill test certificates.¹⁶⁹ Finally, Thunder Pipe’s mill test certificate lists one of PET’s telephone numbers.¹⁷⁰ As such, these facts indicate that PET created Thunder Pipe’s mill test certificate.

mill test certificates

[]

The Thunder Pipe mill test certificate claims the pipe is steel grade “[]”.¹⁷¹ Although [#] is a drill pipe steel grade, [#] is an OCTG steel grade.¹⁷² Because PET does not produce drill pipe and has exported misclassified OCTG as drill pipe in multiple instances, this corroborates that PET exported misclassified OCTG as drill pipe under Thunder Pipe’s company name in this instance as well.

¹⁶⁴ See January Memorandum at Attachment 9, page 1.

¹⁶⁵ See Alleger Voluntary Factual Information 2 at 11.

¹⁶⁶ See January Memorandum at Attachment 9, page 1; see also September 24 Memorandum at Attachment 39, page 24. The PET telephone number provided was [phone number].

¹⁶⁷ See September 24 Memorandum at Attachment 39, pages 362, 368, 372, 374; Attachment 40, pages 30, 38; and Attachment 41, pages 4, 29.

¹⁶⁸ See January Memorandum at Attachment 8, page 9, and Attachment 9, page 5.

¹⁶⁹ *Id.*; see also September 24 Memorandum at Attachment 45, page 14.

¹⁷⁰ See January Memorandum at Attachment 9, page 5; see also September 24 Memorandum at Attachment 39, page 24.

¹⁷¹ See January Memorandum at Attachment 9, page 5.

¹⁷² See June 12 Memorandum at Attachment 13.

It is uncertain whether Thunder Pipe allowed PET to use its company name or whether PET is fraudulently using it without Thunder Pipe's consent. Regardless, Thunder Pipe is the latest company name that PET is exporting its merchandise under.

Interestingly, PET ostensibly cooperated with Commerce's circumvention inquiry while it avoided CBP during this investigation. As part of that inquiry, PET submitted several submissions to Commerce, such as a September 22, 2025 rebuttal brief, even while it actively evaded CBP's AD/CVD enforcement by exporting under other company names and using false product descriptions, false steel grades, false countries of origin, and false valuations.¹⁷³

That being said, CBP finds that all OCTG and SLP pipe that the Importers entered from PET, VM Industry, Soap Steel, Energy Tubulars, Siam Steel Materials, Energy Industry, and Thunder Pipe during the POI were Chinese-origin OCTG and SLP pipe that was covered by the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders*. CBP also finds that any drill pipe from PET, VM Industry, Soap Steel, Energy Tubulars, Siam Steel Materials, Energy Industry, and Thunder Pipe is actually misclassified OCTG covered by the *OCTG AD/CVD Orders*.

Matthew Wang, Zesheng Steel, and KVS

Matthew Wang, Zesheng Steel, and other related entities played a large role in facilitating the transshipment of PET's OCTG, SLP pipe, and "drill pipe" and repeatedly appear in the investigation's documents. Energy Tubulars' and Energy Industry's websites list Matthew.Wang@JSSteelPipe.com as one of their two main email addresses.¹⁷⁴ That email address belongs to Matthew Wang, who is the primary person in a company group closely associated with PET.

His email domain indicates he works for JS Steel Pipes, which is a trademark of Hebei Jinsheng Pipe Fitting Manufacturing Co., Ltd. (Hebei Jinsheng).¹⁷⁵ Hebei Jinsheng is a Chinese supplier of SLP pipes and other related products.¹⁷⁶ Multiple JS Steel employees are associated with Jingjiang Zesheng International Trade Co., Ltd (Jingjiang Zesheng), a Chinese supplier of OCTG and other related products.¹⁷⁷ The LinkedIn page of a Jingjiang Zesheng salesperson and a Jingjiang Zesheng YellowPages website list two email addresses with a @JSSteelPipe.com domain as contact email addresses.¹⁷⁸ [

event description and phone number

]

telephone number.¹⁷⁹

¹⁷³ See December Memorandum at Attachment 4.

¹⁷⁴ See September 24 Memorandum at Attachment 1, pages 2-3; see also January Memorandum at Attachment 3, page 6.

¹⁷⁵ See Allegor Voluntary Factual Information at Exhibit 3, pages 2, 5-7, 16. Additionally, [description of position]. See September 24 Memorandum at

Attachment 8, pages 7, 9.

¹⁷⁶ See Allegor Voluntary Factual Information at Exhibit 3, pages 2, 5-7, 16.

¹⁷⁷ *Id.* at Exhibit 4, pages 4, 6; see also September 24 Memorandum at Attachment 6, page 5.

¹⁷⁸ See September 24 Memorandum at Attachment 7, pages 34, 37-38.

¹⁷⁹ *Id.* at Attachment 40, pages 182-183.

Jingjiang Zesheng's company name and Chinese address are listed as a primary contact on Zesheng Steel's website.¹⁸⁰ Matthew.Wang@JSSteelPipe.com is also listed multiple times on Zesheng Steel's company website as its main email address.¹⁸¹ Correspondingly, [company description].¹⁸² Thus, JS Steel Pipe/Hebei Jisheng's, Jingjiang Zesheng's, and Zesheng Steel's common personnel, common email domain, and website references to each other indicate they are affiliated companies.

In addition to [company name], APP stated "[individual name] represented PET's seamless line pipe in the U.S. market."¹⁸³ This was reflected in KVS Steel Products Limited's (KVS) invoices, which denoted [

].¹⁸⁴ Further, [

event description

].¹⁸⁵

Additionally, KVS' invoices often listed the [

company event description

] as well.¹⁸⁶ Like the other invoices,

[individual name and phone number

] phone

number in its header.¹⁸⁷ Interestingly, [

description of event between parties

].¹⁸⁸ Thus, the above information reflects KVS' and []'s affiliation with JS Steel Pipe/Hebei Jisheng, Jingjiang Zesheng, and Zesheng Steel.¹⁸⁹

Although these companies do not appear to be directly affiliated with PET, they are closely connected to the "production" and distribution of PET's merchandise and so have an incentive to promote the sale of that merchandise. For example, [

description of products and events

] in its OCTG and SLP pipe.¹⁹⁰ Jingjiang Zesheng's affiliates Zesheng Steel, [company names] also acted as trading companies that

¹⁸⁰ *Id.* at Attachment 6, pages 1, 3-4; *see also* Alleger Voluntary Factual Information at Exhibit 4, pages 1-2, 4-6.

¹⁸¹ *See* September 24 Memorandum at Attachment 6, pages 1, 3-4; *see also* Alleger Voluntary Factual Information at Exhibit 4, pages 1-2, 4-6. Zesheng Steel's company website also lists Matthew Wang's telephone number multiple times as well.

¹⁸² *See* APP RFI at 7, 15; *see also* APP SRFI at 7, 12.

¹⁸³ *Id.*

¹⁸⁴ KVS was registered in Hong Kong, China on September 15, 2022. One invoice from [email address] contact email address and [individual name and phone number] phone number. *See* September 24 Memorandum at Attachment 7, pages 58-60; Attachment 39, page 915; and Attachment 45, pages 258-259, 280-281, 288-289, 299, 310, 317, 324, 364-365, 372, 374, 381-382, 392, 399, 415, 446; *see also* APP RFI at Exhibit Entry-1, pages 29, 35, *etc.*; *see also* APP SRFI at 436.

¹⁸⁵ *See* APP SRFI at 436.

¹⁸⁶ *See* September 24 Memorandum at Attachment 7, pages 58-60; Attachment 39, page 915; and Attachment 45, pages 258-259, 280-281, 288-289, 299, 310, 317, 324, 364-365, 372, 374, 381-382, 392, 399, 415, 446; *see also* APP RFI at Exhibit Entry-1, pages 29, 35, *etc.*; *see also* APP SRFI at 436.

¹⁸⁷ *See* September 24 Memorandum at Attachment 43, pages 378-379.

¹⁸⁸ *See* APP SRFI at 433-434.

¹⁸⁹ *See* September 24 Memorandum at Attachment 6, pages 6-8; Attachment 7, pages 42-45, 58-60; Attachment 43, page 378; and Attachment 45, pages 364, 381; *see also* APP SRFI at 258, 543, 550; *see also* Alleger Voluntary Factual Information at Exhibit 4, pages 2, 3. Zesheng Steel was registered in Singapore on July 26, 2018; Wang Xian is listed as its key principal and director.

¹⁹⁰ *See* September 24 Memorandum at Attachment 40, pages 180, 182-183, 509-512, and Attachment 43, page 366.

facilitated the importation of PET's merchandise.¹⁹¹ APP stated that [description].¹⁹² One of PET's invoices and packing lists to GY Fleet denoted "Zesheng Steel" as the merchandise's buyer and the [product description].¹⁹³ However, other invoices, packing lists, and bills of lading that PET issued denoted [individual name and title] as well.¹⁹⁴ Furthermore, many of the invoices, packing lists and bills of lading that PET issued listed [email address], which indicates he played a role in facilitating the logistics of PET's merchandise.¹⁹⁵ Thus, Zesheng Steel and [name] were trading companies that bought, sold, and played a role in the logistics of PET's merchandise. These tasks promoted the "production" and distribution of PET's merchandise, which was in the interest of Zesheng Steel's company group.

Zesheng Steel and [name] also acted as trading companies for many of the other company names PET used to export its merchandise under. Several VM Industry invoices, packing lists, and bills of lading denote [company name and email address].¹⁹⁶ All Soap Steel's invoices, packing lists, and [company name and email address].¹⁹⁷ Additionally, WangMatthew@gmail.com {sic} was provided to CBP as Soap Steel's main contact.¹⁹⁸ Some of Energy Tubulars' invoices, packing lists, and bills of lading denote [company name and product description].¹⁹⁹ As noted, Energy Tubulars' and Energy Industry's websites list Matthew.Wang@JSSSteelPipe.com as one of their email addresses.²⁰⁰ Thus, record evidence connects Zesheng Steel, [name], and Matthew Wang to the sale and distribution of PET's merchandise under the VM Industry, Soap Steel, and Energy Tubular names.

As CBP will discuss shortly, [individual name and event description]

[name].²⁰¹ As trading companies, Matthew Wang's companies Zesheng Steel and [name] would have seen the documents PET issued, which accompanied PET's shipments under the other company names. As such, Matthew Wang and his companies, Zesheng Steel and [name], were aware these shipments contained PET's merchandise and so they were actively

¹⁹¹ *Id.* at Attachments 43 and 45; *see also* APP RFI at 15, 29, 38, 94; *see also* APP SRFI at 12.

¹⁹² *See* APP SRFI at 7.

¹⁹³ *See* September 24 Memorandum at Attachment 20, page 4, and Attachment 21, page 1.

¹⁹⁴ *Id.* at Attachment 45, pages 30-31, 125-126, 344-345, 348-349, 353-356, 359-360, 391, 398; *see also* USA Lee Long RFI at 184, 192, 221-223, 280-281.

¹⁹⁵ *Id.* at Attachment 39, page 915, and Attachment 45, pages 30-31, 125-126, 258-259, 280-281, 288-289, 299, 310, 317, 324, 344-345, 348-349, 353-356, 359-360, 364-365, 372, 381-282, 391-392, 398-399, 415, 446; *see also* USA Lee Long RFI at 184, 192, 221-223, 280-281.

¹⁹⁶ *See* USA Lee Long RFI at 228-229, 233-235, 239-241, 261-263; *see also* USA Lee Long SRFI 2 at 80, 106-107.

¹⁹⁷ *See* USA Lee Long RFI at 246-248, 253-255, 269-271; *see also* USA Lee Long SRFI 2 at 120, 169-170.

¹⁹⁸ *See* September 24 Memorandum at Attachment 11, pages 1-2, and Attachment 13. [company name and email address].

¹⁹⁹ *Id.* at Attachment 3, pages 4-6, 12-14.

²⁰⁰ *Id.* at Attachment 1, pages 2-3.

²⁰¹ *See* APP SRFI at 433-434.

colluding with PET to evade CBP enforcement of AD/CVD by facilitating PET's transshipment under these other company names.

Regarding those emails, on May 23, 2024, CBP publicly announced its EAPA 7890 investigation into PET, and on May 31, 2024, CBP issued an RFI to PET.²⁰² [

event and shipping description

].²⁰³ [

conversation description

].²⁰⁴

As such, [description of process

]. The fact that [

individual name and process

].

A few months later, on September 27, 2024 and October 4, 2024, CBP performed cargo exams on three shipments from the Malaysian company MH Megah Maju Enterprise (MH Megah).²⁰⁵ MH Megah was declared as the [company description] and ostensibly issued some of the mill test certificates.²⁰⁶ These mill test certificates [event description

], who was referenced in the Siam Steel Materials section above, and the [individual name and event].²⁰⁷ Those [description]

indicate PET issued the mill test certificates under MH Megah's name. Furthermore, [product description].²⁰⁸ Thus, the shipments contained PET's merchandise.

Some of the shipments' documents also referred to VM Industry. The mill test certificates, invoices, packing lists, and laminated tags attached to the pipes denoted [].²⁰⁹ VM Industry appeared to issue some of the shipments' mill test certificates as well, which the [event].²¹⁰ This is consistent with

²⁰² See September 24 Memorandum at Attachments 39, 42.

²⁰³ See APP SRFI at 543-544.

²⁰⁴ *Id.* at 542.

²⁰⁵ See June 12 Memorandum at Attachments 5-7.

²⁰⁶ *Id.*

²⁰⁷ *Id.* at Attachment 7; see also September 24 Memorandum at Attachment 45, pages 6, 14, 23, 261-272, 282-284, 290-294, 383-385, 393-394.

²⁰⁸ See June 12 Memorandum at Attachments 5-7.

²⁰⁹ *Id.*

²¹⁰ *Id.* at Attachment 7.

previously mentioned evidence showing that PET exported its merchandise under VM Industry's name.

The first of these shipments consisted of [description of product].²¹¹ Correspondingly, [individual name and product description].²¹² The [] them at its facility.²¹³ That date is before CBP's May 23, 2024 announcement concerning EAPA 7890 and before [].²¹⁴ Thus, these facts are consistent with the [product].

The shipment documents and cargo exam photographs evince that the three shipments followed the same "[route description] mentioned as well.²¹⁵ First, the [product description] the mill test certificates and the cargo exam photographs of [product description] the pipes show that the shipments originated in Thailand.²¹⁶ Second, the invoices, packing lists, arrival notice/freight invoices, and bills of lading denoted that the port of lading was in Malaysia and the place of delivery was [location].²¹⁷

PET, [individual name] deliberately placed misinformation in the shipments' documents and containers to deceive CBP. First, the shipments' invoices, packing lists, arrival notices, and bills of lading denote the merchandise's port of loading as [location], Malaysia.²¹⁸ However, because [product description], PET exported the merchandise from Thailand. Therefore, these documents suggested the wrong country of origin.

Second, the mill test certificates listed MH Megah and VM Industry in the header and denoted a Malaysian address as the location where the tests were performed.²¹⁹ However, MH Megah and VM Industry did not manufacture the pipes or perform tests on them in Malaysia.²²⁰ Further, VM Industry is a trading company in Thailand and not a manufacturer; therefore, it would not have conducted the tests listed on the mill test certificate in Malaysia.²²¹ As such, MH Megah's

²¹¹ *Id.* at Attachment 5, pages 5-7, 10. In its [product description]. *See, e.g.*, September 24 Memorandum at Attachment 40, page 297.

²¹² *See* APP SRFI at 542.

²¹³ *See* September 24 Memorandum at Attachment 41, page 42. For example, the [] stenciled on the pipe in the photograph corresponds to the October 2024 verification visit to PET's facility.

²¹⁴ *See* APP SRFI at 542.

²¹⁵ *Id.* On [date of event and description]

[]. USA Lee Long does not have any entries from [location]. [individual events]. Thus, this evidence could indicate [event between individuals]

[]. *See* USA Lee Long SRFI 2 at 65, 108.

²¹⁶ *See* June 12 Memorandum at Attachments 5-7.

²¹⁷ *Id.*

²¹⁸ *Id.*

²¹⁹ The three shipments' [product description], which reflects PET's use of the VM Industry name at some point in their journeys.

²²⁰ *Id.*

²²¹ *See* USA Lee Long CF-28 Response – VM Industry; *see also* Leadtop CF-28 Response – VM Industry.

and VM Industry's mill test certificates constituted attempts to falsely portray the pipes as originating in Malaysia.

Third, several sheets of paper stating "Made in Malaysia" in large letters were taped to the sides of the pipe bundles in the shipping containers.²²² Fourth, the "Made in Thailand" section was cut off of some of the laminated tags zip-tied to the pipe ends in the shipping containers.²²³ Malaysia was instead declared as the country of origin to CBP at entry.²²⁴ Finally, someone spray painted black paint over the "Made in Thailand" lettering on the pipes.²²⁵ However, CBP personnel rubbed off that spray paint during the cargo exams, which revealed "Made in Thailand" underneath.²²⁶ Thus, these observations show deliberate attempts to hide that the shipments came from PET in Thailand and to portray them as originating in Malaysia.

PET, [] placed false merchandise descriptions information in the shipments' documents as well. Their invoices, packing lists, arrival notices, bills of lading, Malaysian certificates of origin, entry/immediate entry forms, and entry summaries ostensibly described the merchandise as "seamless drill pipe."²²⁷ However, these documents indicated that the pipes were [product description].²²⁸ The cargo exam photographs also showed that the pipes were stenciled "API 5CT," which is the API standard pertaining to OCTG and not to drill pipe.²²⁹ As such, the shipment's merchandise was OCTG from PET that was misclassified as drill pipe.

In addition to those shipments, [individual and company name] played a major role in the transshipment of PET's merchandise to [company name].

USA Lee Long

The invoices and packing lists [name], VM Industry, and Soap Steel issued to USA Lee Long usually denoted [company names and email address] as one of the email addresses in the notify party area.²³⁰ In spite of these references, USA Lee Long stated in response to the RFI:

- "USA Lee Long never had any direct connection or contact with [company name]"²³¹

²²² See June 12 Memorandum at Attachments 5-7.

²²³ *Id.* at Attachment 5, pages 13-14; Attachment 6, page 14; and Attachment 7, pages 24, 29.

²²⁴ *Id.* at Attachments 5-7.

²²⁵ *Id.* at Attachment 5, pages 17, 19-20; Attachment 6, pages 12, 15; and Attachment 7, pages 30-34.

²²⁶ *Id.* at Attachment 7, pages 30-34.

²²⁷ *Id.* at Attachments 5-7.

²²⁸ *Id.* at Attachment 5, page 10; Attachment 6, pages 17, 19; Attachment 7, pages 26, 28; and Attachment 13.

²²⁹ *Id.*

²³⁰ See USA Lee Long SRFI 2 at 169-170, 177-178; see also USA Lee Long RFI at 184, 192, 221-222, 228-229, 233-234, 239-240, 246-247, 253-254, 261-262, 269, etc.

²³¹ See USA Lee Long SRFI 2 at 16.

- “USA Lee Long never had any direct connection or contact with [company name].”²³²
- “USA Lee Long had no contacts with [company name]....”²³³
- “USA Lee Long had no business relationship with [company name].”²³⁴
- “USA Lee Long has no knowledge of [individual name] and never had any direct connection or contact with him.”²³⁵
- “USA Lee Long has no knowledge of [email address] {.”²³⁶

However, several facts show that USA Lee Long had a direct connection with and knowledge of [company and individual name], and his email address. First, [company names] made several large payments directly to USA Lee Long.²³⁷ Second, [email address] was listed in the notify party field of multiple invoices, packing lists, and bills of lading that were issued to USA Lee Long.²³⁸ Third, USA Lee Long provided wangmattew@gmail.com {sic} to CBP as the contact email address for Soap Steel.²³⁹ Fourth, multiple [

].²⁴⁰ Fifth, [events between individuals].²⁴¹ Moreover, [conversations] in one of those emails.²⁴² As noted, [individual description]. Thus, USA Lee Long had a direct connection with and knowledge of [company and individual names]’s email address and so made several false statements to CBP. As such, CBP finds that USA Lee Long did not cooperate to the best of its ability and is applying an adverse inference to USA Lee Long.²⁴³

Although USA Lee Long communicated with [], it claimed it “only interacted with the Thai Agent – [company name].”²⁴⁴ USA Lee Long stated that the “Thai agent” sent the commercial and shipping documents to USA Lee Long for it to convey to the

²³² *Id.* at 15-16.

²³³ *Id.* at 16.

²³⁴ *Id.*

²³⁵ *Id.* at 17.

²³⁶ *Id.* at 9.

²³⁷ See USA Lee Long RFI at 125, 131, 141, 148, 157, 161, 169-170.

²³⁸ *Id.* at 221-223, 228-229, 233-235, 239-241, etc; see also USA Lee Long SRFI 2 at 113, 120.

²³⁹ See September 24 Memorandum at Attachments 11, 13. USA Lee Long also claimed that “USA Lee Long has no knowledge of Soap Steel Co Ltd. USA Lee Long had no direct connection or contact with Soap Steel Co Ltd.” See USA Lee Long SRFI 2 at 19.

²⁴⁰ See USA Lee Long SRFI 2 at 108, 110, 115, 119, 121, 125, 127-128, 130-132. “USA Lee Long is owned by [individual name], who also partially owns ‘ZHL Supply Chain Corp{.}’” []. See USA Lee Long Written Arguments at 9; see also USA Lee Long SRFI 2 at 9; see also November Memorandum at Attachment 5; see also September 24 Memorandum at Attachment 35, pages 18-19. She uses Ull518@hotmail.com as her USA Lee Long email address and [email address] as her ZHL email address.

²⁴¹ See USA Lee Long SRFI 2 at 108, 121, 125-126, 130. [individual name and email address].

²⁴² *Id.* at 125.

²⁴³ See 19 U.S.C. § 1517(c)(3); see also 19 C.F.R. § 165.5(b)(3) and § 165.6.

²⁴⁴ See USA Lee Long SRFI 2 at 19. USA Lee Long said this in response to CBP’s request for “a list of all agents, trading companies, middlemen, etc. that you interacted with regarding USA Lee Long’s POI entries.”

customs broker for filing the CBP entries.²⁴⁵ Because [position description] of PET's merchandise, he very likely would have had access to those documents.²⁴⁶ As such, [individual name] may have obtained those documents from PET and provided them to the "Thai agent" who then forwarded them to USA Lee Long. Corroborating that, the "Thai agent" is a []²⁴⁷ Furthermore, [position description] of at least some of the merchandise from USA Lee Long's entries.²⁴⁸

It is also notable that "Thai agent" is a false designation because that party was not from Thailand in any sense. Its full company name is []

[]²⁴⁹ Although USA Lee Long claimed it met a contact from the "Thai agent" in Thailand, the purported meeting location in Thailand would not make it a "Thai agent" any more than the meeting location would make USA Lee Long a Thai importer. Thus, "[description] agent" is a more appropriate designation. USA Lee Long made several false statements to distance itself from [company and individual name]; thus, USA Lee Long's "Thai agent" designation appears to be another attempt to mislead CBP.²⁵⁰

[], made several large payments directly to USA Lee Long.²⁵¹ USA Lee Long stated it received these payments "for its service rendered as the IOR {importer of record} / agent on behalf of the foreign suppliers for the importation of subject merchandise."²⁵² USA Lee Long further explained that "the foreign supplier provided Lee Long with the associated duties for submission to CBP at entry" out of which it "received either a [#] commission that was calculated against the entry values declared to CBP."²⁵³ In other words, [company names] paid USA Lee Long, USA Lee Long used those funds to pay the broker [company name] for the entries' duties and fees, and USA Lee Long then retained a [#] commission from those funds.²⁵⁴

Several facts demonstrate that USA Lee Long does not qualify to be an importer of record and so does not have the right to make entry. CBP's statute at 19 U.S.C. § 1484(a) provides that only the "importer of record" has the right to make entry.²⁵⁵ Importer of record is defined as the owner or purchaser of the goods, or it may be a licensed Customs broker when designated by the

²⁴⁵ *Id.* at 10.

²⁴⁶ *See, e.g.*, APP RFI at 8-9.

²⁴⁷ *See* USA Lee Long SRFI 2 at 10, 54, 119; *see also* APP SRFI at 542.

²⁴⁸ *Id.* at 10, 54, 119. USA Lee Long stated that [email address], was the email address of one buyer. *See* [email addresses of individuals]

[] were in the emails USA Lee Long provided.

²⁴⁹ *See* USA Lee Long SRFI 2 at 8; *see also* September 24 Memorandum at Attachment 36.

²⁵⁰ USA Lee Long also did not provide its [individual name]'s bank statements as requested. *See* USA Lee Long SRFI 2 at 11, 20.

²⁵¹ *See* USA Lee Long RFI at 125, 131, 141, 148, 157, 161, 169-170.

²⁵² *See* USA Lee Long SRFI 2 at 11.

²⁵³ *See* USA Lee Long at 14-15; *see also* USA Lee Long SRFI 2 at 6-7. The amount was also meant to cover "terminal fees, inspection fees, *etc.*" and "Customs Broker fees and certain U.S. port charges, *etc.*"

²⁵⁴ *See* USA Lee Long SRFI 2 at 13.

²⁵⁵ *See* 19 U.S.C. § 1484(a); *see also* Customs Directive 3530-002A, dated June 27, 2001.

owner, purchaser, or consignee.²⁵⁶ CBP has stated the following regarding the owner and purchaser of the goods:

The terms “owner” and “purchaser” include any party with a financial interest in a transaction, including, but not limited to, the actual owner of the goods, the actual purchaser of the goods, a buying or selling agent, a person or firm who imports on consignment, a person or firm who imports under loan or lease, a person or firm who imports for exhibition at a trade fair, a person or firm who imports goods for repair or alteration or further fabrication, *etc.* Any such owner or purchaser may make entry on his own behalf or may designate a licensed Customs broker to make entry on his behalf and may be shown as the importer of record on the CF 7501. The terms “owner” or “purchaser” would not include a “nominal consignee” who effectively possesses no other right, title, or interest in the goods except as he possessed under a bill of lading, air waybill, or other shipping document.²⁵⁷

USA Lee Long confirmed “Neither [individual name] nor USA Lee Long has ever been a licensed Customs broker.”²⁵⁸ USA Lee Long also admitted it was never the merchandise’s owner, purchaser, buying agent, or selling agent and stated in response to the RFI:

- “USA Lee Long never took title to the merchandise that was imported into the U.S. and was never the purchaser of the goods.”²⁵⁹
- “USA Lee Long’s (“Lee Long’s”) only involvement in the shipments that are the subject of this investigation was that of importer of record (IOR). It was not a party to the commercial transaction between the foreign supplier/exporter and the domestic purchaser; and never made/received payment for nor took title to the goods.”²⁶⁰
- “Lee Long did not purchase covered merchandise. It only acted as IOR in return for a payment for this service.”²⁶¹
- “USA Lee Long’s sole activity was coordinating customs clearance with CBP and serving as IOR for those shipments presented to it by [company name].”²⁶²

Further, USA Lee Long did not store the merchandise or even appear to know who the buyer of the merchandise was other than one buyer email address it provided to CBP.²⁶³ They stated

After clearance, USA Lee Long provided the Thai agent with the release notice. From this point onwards, USA Lee Long had no involvement in the goods and no knowledge as to what entity picked them up from the port facility. USA Lee Long was not responsible for any subsequent handling.²⁶⁴

²⁵⁶ *Id.*

²⁵⁷ See Customs Directive 3530-002A at Section 5.3.1.

²⁵⁸ See USA Lee Long SRFI 2 at 13.

²⁵⁹ *Id.*

²⁶⁰ See USA Lee Long RFI at 6.

²⁶¹ *Id.* at 22.

²⁶² See USA Lee Long SRFI 2 at 8.

²⁶³ *Id.* at 6.

²⁶⁴ *Id.* at 14.

Nevertheless, USA Lee Long claims it has a financial interest in the imported goods because it received a [#] commission for each entry.²⁶⁵ USA Lee Long claims CBP ruling HQ H275549 supports its financial interest claim. That ruling defines “‘financial interest’ ‘as a nexus between the financial welfare of the owner or purchaser and the imported goods.’”²⁶⁶ However, USA Lee Long omitted to mention that the importer that requested HQ H275549 was affiliated with its foreign supplier through “a common owner having direct control over both companies.”²⁶⁷ Thus, their common ownership led to a common financial interest in the supplier’s merchandise. However, USA Lee Long never claimed to be affiliated with its suppliers PET, VM Industry, and Soap Steel and so does not have a financial interest like HQ H275549’s importer and supplier in the imported goods. Thus, HQ H275549’s financial interest ruling is not applicable to USA Lee Long.

USA Lee Long entered [#] entries of SLP pipe from PET and VM Industry under HTSUS numbers [numbers].²⁶⁸ USA Lee Long later claimed that two of those SLP pipe entries, [#]4393 and [#]9442 from VM Industry, were accidentally misclassified and should have been classified as drill pipe.²⁶⁹ These entries’ invoices and packing lists describe the merchandise as “[].”²⁷⁰ However, other evidence exists that they are instead OCTG. The production documents USA Lee Long provided for these entries list OCTG [product description].²⁷¹ Because PET has repeatedly facilitated evasion, and the entries’ production documents denote [product description], it is reasonable that PET incorrectly declared this merchandise to evade *OCTG AD/CVD Orders*.

Furthermore, substantial evidence exists that all the drill pipe PET exported, whether under its own company name or under other company names, was misclassified OCTG. First, PET’s, Energy Tubulars’, and Energy Industry’s websites claimed to produce OCTG and SLP pipe but they never claimed to produce drill pipe.²⁷² Accordingly, during EAPA 7890’s verification, PET claimed to produce OCTG and SLP pipe but not drill pipe.²⁷³ Second, PET and Energy Tubulars were certified to use OCTG standard API 5CT and SLP pipe standard API 5L but they were not certified to use drill pipe standard API 5DP.²⁷⁴

Third, CBP has discovered multiple instances in which the “drill pipe” PET exported was actually misclassified OCTG. As noted, PET exported three shipments of “drill pipe” using MH Megah’s company name.²⁷⁵ However, these pipes were stenciled with the OCTG standard “API

²⁶⁵ *Id.* at 13-14.

²⁶⁶ See CBP Ruling HQ H275549, dated April 6, 2017 at <https://rulings.cbp.gov/ruling/H275549>. CBP Rulings are normally related to the particular shipment/entry at issue in the ruling.

²⁶⁷ *Id.*

²⁶⁸ See September 24 Memorandum at Attachment 2; see also USA Lee Long Allegation at Exhibit 3; see also June 12 Memorandum at Attachment 2, page 4.

²⁶⁹ See NOI at 11; see also USA Lee Long CF-28 Response – VM Industry at 7.

²⁷⁰ See USA Lee Long RFI at 199-200; see also USA Lee Long SRFI 2 at 177-178.

²⁷¹ See USA Lee Long CF-28 Response – VM Industry at 50-61, 67-77.

²⁷² See Allegations at Exhibit 6; see also Allegers Voluntary Factual Information at Exhibit 2; see also January Memorandum at Attachment 3.

²⁷³ See September 24 Memorandum at Attachment 41, page 4.

²⁷⁴ See Allegers Voluntary Factual Information at Exhibit 1.

²⁷⁵ [company] was the importer of these three shipments.

5CT,” and their accompanying documents indicated they were [[product description](#)].²⁷⁶ CBP also discovered that Siam Steel Materials exported OCTG misclassified as drill pipe in at least two instances.²⁷⁷ In both shipments, the pipes were declared to be drill pipe and [[product description](#)],” which is suspicious because any specific API standard was omitted.²⁷⁸ The shipments also contained [[product description](#)].²⁷⁹

Thus, in light of the combined evidence, CBP finds that all drill pipe exported from PET, VM Industry, and any other company name PET used is Chinese-origin OCTG covered by the *OCTG AD/CVD Orders*; this includes USA Lee Long’s entries of “drill pipe” from VM Industry. Bolstering that, CBP is applying adverse inferences against USA Lee Long for false statements and against PET and VM Industry for failing to cooperate with CBP’s requests for information. One of the adverse inferences CBP is applying against them is that any “drill pipe” PET and VM Industry exported to USA Lee Long (or other Importers) is OCTG.

In light of the preceding evidence, CBP finds all USA Lee Long’s POI entries from PET, VM Industry, and Soap Steel are Chinese-origin OCTG and SLP pipe covered by the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders*.

Leadtop and GME Trade Ease

Leadtop and GME Trade did not cooperate with CBP’s repeated requests to bracket their RFI responses and create a public version and ceased all communications with CBP.²⁸⁰ As such, CBP rejected their RFI responses as nonconforming submissions and so was unable to substantiate their affiliation with each other.²⁸¹ However, several facts indicate Leadtop and GME Trade Ease are affiliated companies, nonetheless.²⁸² Leadtop and GME Trade Ease imported the same merchandise from VM Industry described as “drill pipe.”²⁸³ Leadtop and GME Trade Ease use the same broker and were both founded by an individual named Guimei Guo.²⁸⁴ GME Trade Ease’s registered address is in metropolitan Los Angeles, so it appears to differ from Leadtop’s New York and Colorado addresses; however, an official Colorado business document for Leadtop listed Guimei Guo’s mailing address in metropolitan Los

²⁷⁶ See June 12 Memorandum at Attachment 5, page 10; Attachment 6, pages 17, 19; Attachment 7, pages 26, 28; and Attachment 13.

²⁷⁷ See September 24 Memorandum at Attachment 45, page 532; *see also* November Memorandum at Attachment 2; *see also* December Memorandum at Attachment 2.

²⁷⁸ See November Memorandum at Attachment 2, pages 2-3, and Attachment 3; *see also* December Memorandum at Attachment 2. The first shipment was Honesty Build Inc. entry [<#>]1892. The second shipment was to Honesty Build Inc. also; however, it was re-exported before there was an entry.

²⁷⁹ See November Memorandum at Attachment 2, page 4, and Attachment 3.

²⁸⁰ See CBP Emails to Leadtop Regarding Bracketing Issues, dated August 1, 2025; *see also* CBP Emails to GME Trade Ease Regarding Bracketing Issues, dated August 1, 2025.

²⁸¹ *Id.*; *see also* 19 C.F.R. § 165.4(b).

²⁸² See NOI at 5-6.

²⁸³ See June 12 Memorandum at Attachment 1, pages 1-3, 5; Attachment 2, pages 1-2, 5-6; and Attachment 10.

²⁸⁴ *Id.* at Attachment 1, pages 7, 9-11; Leadtop Allegation at Exhibit 13, page 1; *see also* September 24 Memorandum at Attachments 29, 32, 34, 45. “[[name](#)]” is also listed as Leadtop’s CEO on several forms. Andy Guo (Andy@CIF-Log.com) is another contact at Leadtop. Because Guimei Guo and Andy Guo are both contacts for Leadtop, Andy Guo may be another name for Guimei Guo. *See* Leadtop CF-28 Response – VM Industry at 8.

Angeles as of December 2024.²⁸⁵ Thus, Leadtop and GME Trade Ease are both located in metropolitan Los Angeles and have a shared general location, ownership, broker, merchandise sources, merchandise types, and general timeframe of importation. As such, CBP determines they are affiliated companies.

Leadtop and GME Trade Ease appear to be affiliated with at least one other U.S. company. Xiaolong Chen was listed as one of GME Trade Ease's other points of contact.²⁸⁶ In June 2024, Xiaolong Chen registered a company named Destiny Global Trade Inc. at the same address as GME Trade Ease in Gardena, California.²⁸⁷ Thus, Leadtop and GME Trade Ease are affiliated with Destiny Global Trade Inc. through common a common employee/founder as well.

One of Leadtop's email addresses (Andy@cif-log.com) indicates that Leadtop and GME Trade Ease are affiliated with a Chinese freight forwarder.²⁸⁸ That email address has the same domain as Huaxi (Xiamen) Logistics Co., Ltd.'s (Huaxi Logistics) website <http://www.cif.log.com>.²⁸⁹ Huaxi Logistics is also known as China International Freight Co., Ltd. or CIF Logistics Co., Ltd., and its website indicates it is a logistics company in Xiamen, China.²⁹⁰ Some of Leadtop's entry documents also list the email address [email address], which is associated with Huaxi Logistics and CIF Logistics Co., Ltd.²⁹¹ Huaxi Logistics/China International Freight Co., Ltd. [description of entries].²⁹² As previously noted, [description of transaction]

[description].²⁹³ Thus, the preceding information suggests that Huaxi Logistics [description] may have set up Leadtop and GME Trade Ease as importers of record to facilitate the movement of merchandise.

Leadtop and GME Trade entered 35 POI entries from PET and VM Industry as either SLP pipe under HTSUS 7304191030 or as drill pipe under 7304236030.²⁹⁴ Because PET and VM Industry exported those SLP pipes to Leadtop/GME Trade Ease and PET/VM Industry has facilitated the evasion of Chinese-origin SLP pipe, CBP finds all Leadtop/GME Trade Ease's entries of SLP pipe from PET or VM Industry are Chinese-origin merchandise covered by the *SLP AD/CVD Orders*.

Regarding the drill pipe Leadtop and GME Trade Ease entered, the scope of the *OCTG AD/CVD Orders* state that drill pipe is excluded from the orders.²⁹⁵ Correspondingly, record evidence

²⁸⁵ See June 12 Memorandum at Attachment 1 and Attachment 3, pages 9-10. The document is a "Periodic Report."

²⁸⁶ See September 24 Memorandum at Attachment 32.

²⁸⁷ *Id.* at Attachment 31.

²⁸⁸ See Leadtop CF-28 Response – VM Industry at 8.

²⁸⁹ See September 24 Memorandum at Attachment 33, page 3.

²⁹⁰ *Id.* at Attachment 33, pages 3, 5-6, 10.

²⁹¹ *Id.* at Attachment 33, page 6, and Attachment 45, pages 186, 193, 197, 204, *etc.*

²⁹² *Id.*

²⁹³ See APP SRFI at 542.

²⁹⁴ See September 24 Memorandum at Attachment 2; *see also* Leadtop CF-28 Response – PET; *see also* Leadtop CF-28 Response – VM Industry; *see also* GME Trade Ease CF-28 Response. The *SLP AD/CVD Orders* denote HTSUS 7304191030 as an SLP pipe classification. *See* Allegations at Exhibit 1.

²⁹⁵ *See OCTG AD/CVD Orders*.

indicates that this drill pipe was misclassified OCTG. One of Leadtop's CF-28 responses contained a bill of lading describing the merchandise as seamless drill pipe, but that it was composed of the OCTG steel grade P110.²⁹⁶ Likewise, the production flow chart and purported production documents in both of Leadtop's CF-28 responses also indicated the merchandise was made from OCTG steel grade P110 and adhered to API 5CT.²⁹⁷ The purported raw material documents also list the OCTG API 5CT standard and OCTG steel grade J55.²⁹⁸ As such, these documents indicate that Leadtop's entries contained misclassified OCTG and not drill pipe.

CBP performed a cargo exam on a GME Trade Ease entry of "drill pipe" from VM Industry that showed it contained misclassified OCTG as well.²⁹⁹ Those pipes were stenciled "PET Steel API Standard," which is suspicious because they did not indicate any specific API standard.³⁰⁰ The bill of lading and several laminated tags attached to the pipes indicated that the pipes were [#], which is an OCTG steel grade and not a drill pipe steel grade.³⁰¹ This steel grade indicates that GME Trade Ease imported OCTG misclassified as drill pipe.

As noted in USA Lee Long's section, PET did not claim to produce drill pipe on its website, it was not certified to use the API 5DP standard, and multiple shipments from PET have been found to contain OCTG misclassified as drill pipe. Thus, in light of the combined evidence, CBP finds that all drill pipe exported from PET, VM Industry, and any other company name PET used is Chinese-origin OCTG covered by the *OCTG AD/CVD Orders*; this includes all Leadtop and GME Trade Ease entries of "drill pipe" from PET and VM Industry.

GY Fleet

Guoyong Huang registered GY Fleet in Florida on June 27, 2022.³⁰² He also registered HG Global Inc. and Vogue X Trading Inc in Florida and AKLX Trading Inc in California, which are shown in the chart below.³⁰³ Renjie Li, who was also a [event description], registered several companies noted below in Florida and California.³⁰⁴ Several facts connect Guoyong Huang, Renjie Li, and GY Fleet to [company name], which was the importer of the three OCTG shipments PET and [] attempted to transship through MH Megah in Malaysia.³⁰⁵

GY Fleet declared [company] to be a consignee in one of its 2024 entries.³⁰⁶ The three [company name]/MH Megah shipments' invoices, packing lists, bills of lading, and arrival notices listed Renjie Li's email address [email address] and two other companies

²⁹⁶ See Leadtop CF-28 Response – VM Industry at 88.

²⁹⁷ *Id.* at 49-54, 61-69, 86; see also Leadtop CF-28 Response – PET at 10, 29-36, 42-47, 50.

²⁹⁸ See Leadtop CF-28 Response – VM Industry at 72, 74-82; see also Leadtop CF-28 Response – PET at 12, 14-22.

²⁹⁹ See June 12 Memorandum at Attachment 8. This was GME Trade Ease entry [#]8045.

³⁰⁰ *Id.*

³⁰¹ *Id.* at Attachment 8, pages 5, 11, 16, and Attachment 13; see also September 24 Memorandum at Attachment 41, page 4. The entry's invoice and packing list did not specify a steel grade.

³⁰² See GY Fleet Allegation at Exhibit 11; see also September 24 Memorandum at Attachment 23.

³⁰³ See September 24 Memorandum at Attachments 22 and 27.

³⁰⁴ *Id.* at Attachment 45, pages 146-147, 154.

³⁰⁵ See June 12 Memorandum at Attachments 5-7.

³⁰⁶ See September 24 Memorandum at Attachment 2.

Renjie Li registered as consignees, [company name] and RJ 49 International Inc.³⁰⁷ Moreover, two of the other companies Guoyong Huang and Renjie Li registered in California share the same address (1719 69th St, Sacramento, CA) as [company name].³⁰⁸ These combined facts suggest that [company name] may be a GY Fleet affiliate. Additionally, these combined facts demonstrate the involvement of GY Fleet's personnel in the attempted evasion of the three [company name]/MH Megah shipments.³⁰⁹

Figure 3: Companies Connected to GY Fleet				
Company	Address	Agent	Filed	Dissolved
GY Fleet	5680 NW 163 rd St, Miami Gardens	Guoyong Huang	06/27/2022	
HG Global Inc.	5680 NW 163 rd St, Miami Gardens	Guoyong Huang	06/27/2022	
HJ 96 Enterprises Inc. ³¹⁰	5680 NW 163 rd St, Miami Gardens	Haojie Li	06/27/2022	
LH 96 Development Inc.	5412 NW 163 rd St, Miami Lakes, FL	Haojie Li	06/27/2022	02/16/2024
LS 84 Management Inc.	5412 NW 163 rd St, Miami Lakes, FL	Sun Li	06/27/2022	
LR 49 Trading Inc. ³¹¹	16495 NW 49 th Ave, Hialeah, FL	Renjie Li	06/27/2022	02/16/2024
RJ 49 International Inc. ³¹²	16495 NW 49 th Ave, Hialeah, FL	Renjie Li	06/27/2022	02/16/2024
Sunny Sunshine 56 Inc.	16495 NW 49 th Ave, Hialeah, FL	Renjie Li	07/29/2019	
FY Trading Inc. ³¹³	16495 NW 49 th Ave, Hialeah, FL	Ouyong Fu / Ming Wai Ng	12/07/2021	02/16/2024
GS Management Inc.	16495 NW 49 th Ave, Hialeah, FL	Shaoyong Gong / Ming Wai Ng	12/07/2021	
Vogue X Trading Inc.	16495 NW 49 th Ave, Hialeah, FL	Guoyong Huang	03/22/2023	
Southeast R Trading Inc.	5412 NW 163 rd St, Miami Lakes, FL	Haojie Li	03/22/2023	
SL Exchange Inc.	5412 NW 163 rd St, Miami Lakes, FL	Sun Li	06/23/2022	02/16/2024
Impact C Trading Inc.	5680 NW 163 rd St, Miami Gardens	Sun Li	03/22/2023	
[company name] ³¹⁴	1719 69 th St, Sacramento, CA	?	?	
LR Glory Inc.	1719 69 th St, Sacramento, CA	Renjie Li	10/29/2021	02/15/2024
HT Development Inc.	1719 69 th St, Sacramento, CA	Tianzhou Hua	10/29/2021	02/15/2024
Hatis Trading Inc.	1719 69 th St, Sacramento, CA	Sun Li	11/22/2023	
AKLX Trading Inc.	1719 69 th St, Sacramento, CA	Heijun Ou / Guoyong Huang	12/14/2023	
Hongsun Trading Inc.	1719 69 th St, Sacramento, CA	Lingmi Ouyang	12/14/2023	
LY Pacific Inc.	1719 69 th St, Sacramento, CA	Lin Yu	07/09/2021	

Several people with connections to [company name]'s and GY Fleet's addresses registered other companies in Florida and California. Several of these companies were registered on the same date as GY Fleet (June 27, 2022) and/or were dissolved on the same dates (February 15 or 16, 2024) as each other. These companies' shared addresses, agent names, filing dates, and dissolution dates that suggest they belong to a parent company that registers importer companies in the United States to facilitate the movement of merchandise.

This scenario is corroborated by GY Fleet's collaboration with Zesheng Steel or [name] in multiple entries. In one instance, [company name] issued the invoice and packing list for a [

³⁰⁷ See June 12 Memorandum at Attachments 5-7.

³⁰⁸ *Id.*; see also September 24 Memorandum at Attachment 24, pages 2-3, and Attachment 27, pages 46-47.

³⁰⁹ See June 12 Memorandum at Attachments 5-7.

³¹⁰ This entity was the [description] for GY Fleet entry [#]1066. [email address] was the entity's contact email address. See September 24 Memorandum at Attachment 45, pages 158-161.

³¹¹ This entity was the [individual description] entry 8297 from MH Megah. See June 12 Memorandum at Attachment 5.

³¹² RJ International Inc. was listed as the consignee for [] entry 8404 from MH Megah. See June 12 memorandum at Attachment 6.

³¹³ GY Fleet entry [#]1211 lists GY Fleet's contact information as [phone number and email address]. That telephone number and email address are also listed as FY Trading Inc's contact information. See September 24 Memorandum at Attachment 22, pages 8-10, 12, and Attachment 45, pages 132-133.

³¹⁴ This was the importer of the three misclassified shipments of OCTG that PET transshipped through MH Megah.

[company name] entry from PET that listed [company description].³¹⁵ In another instance, PET issued GY Fleet entry 8529's invoice and packing list, which both denoted GY Fleet in the "Ship To" field and listed Zesheng Steel in the "Buyer" field.³¹⁶ CBP's cargo exam on that entry discovered "Zesheng-PET Steel" was printed on laminated tags affixed to the pipes.³¹⁷ APP issued two purchase orders to [] that had the same purchase order numbers as the ones listed on GY Fleet's entry 8529 invoice.³¹⁸ APP notes that it agreed to purchase the merchandise from one of these purchase orders.³¹⁹ These facts suggest that APP ordered PET merchandise from the [company name], and then []/Zesheng Steel used GY Fleet as the importer of record, so APP would not be liable for AD/CVD duties. Because GY Fleet was not the buyer of the merchandise and because of Zesheng Steel/[description of company's event], GY Fleet may also not have a right to make entry.

As previously noted, [

individual's description with company

].³²⁰ Thus, a parent [description] company may have set up GY Fleet, and then [individual name] may have used it as the importer of record to move PET's merchandise to the United States.

GY Fleet entered seven entries of SLP pipe and seamless large-diameter pipe from PET and VM Industry.³²¹ CBP notes that GY Fleet declared that one of those entries only contained HTSUS 7304191045, which is SLP Pipe.³²² However, the entry's invoice indicated it also contained undeclared seamless large-diameter pipe, which is properly classified under HTSUS 7304191080.³²³ As such, CBP will correct this entry accordingly. That being said, CBP determines that all of GY Fleet's entries from PET and VM Industry contained Chinese-origin merchandise. Thus, CBP will correct these entries' country of origin from Thailand to China. The entries of SLP pipe are covered by the *SLP AD/CVD Orders*. The entries of seamless large-diameter pipe are not covered by the *SLP AD/CVD Orders* but are covered by other duties germane to China, such as Section 301 duties.

Amek

Amek entered three entries of SLP pipe from PET during the POI.³²⁴ Because of the evidence related to PET's exports to Amek discussed above, CBP finds that these entries are Chinese-origin SLP pipe covered by the *SLP AD/CVD Orders*.

³¹⁵ See September 24 Memorandum at Attachment 45, pages 343-350.

³¹⁶ See September 25 Memorandum at 7-8.

³¹⁷ *Id.* at 16.

³¹⁸ See Letter from APP, "Investigation Concerning Evasion of the Antidumping and Countervailing Duty Orders on Seamless Carbon and Alloy Steel Standard, Line, and Pressure Pipe from China; EAPA Consolidated Case Number 8164: American Piping Product, Inc.'s Response to Request for Comment on Valuation," dated October 8, 2025 (APP Valuation Comments).

³¹⁹ *Id.* at 8.

³²⁰ See APP SRFI at 542.

³²¹ See September 24 Memorandum at Attachment 2; see also GY Fleet Allegation at Exhibit 3.

³²² That was GY Fleet entry [#]8529.

³²³ See September 25 Memorandum at 8.

³²⁴ See September 24 Memorandum at Attachment 2; see also Amek Allegation at Exhibit 3.

APP

APP entered [#] POI entries from PET.³²⁵ Record evidence indicates that PET's POI merchandise is Chinese-origin, as discussed above. Thus, [#] of APP's [#] POI entries from PET contained Chinese-origin SLP pipe covered by the *SLP AD/CVD Orders*.³²⁶ APP's other three POI entries from PET contained seamless large-diameter pipe not covered by the *OCTG AD/CVD Orders* or *SLP AD/CVD Orders*.³²⁷ Those entries were incorrectly declared as Thai-origin; as such, CBP will correct those entries' country of origin to China.³²⁸

TSP

APP also entered five POI entries of seamless large-diameter pipe from TSP.³²⁹ During December 8-11, 2025, CBP officials visited TSP's facility in Thailand.³³⁰ While there, CBP officials confirmed that APP's POI entries from TSP only contained seamless large-diameter pipe that was not subject to any AD/CVD orders.³³¹ However, record evidence indicates that this seamless large-diameter pipe, along with TSP's OCTG and SLP pipe, are Chinese-origin merchandise rather than Thai-origin merchandise.

During verification, TSP explained that "all their raw materials are from China, except for one 2018 shipment from South Korea."³³² TSP stated in its first RFI response that "TSP's procedures has determined that all the raw material should have to be hollow pipes."³³³ Company officials confirmed during verification that they only use hollow pipes as raw materials.³³⁴ Correspondingly, TSP's manufacturing process shows a picture of hollow pipes for its first production step, raw material inspection.³³⁵ TSP also confirmed that the seamless steel pipes it mentioned in its RFI response were raw materials.³³⁶ Thus, these facts indicate that TSP only used seamless hollow steel pipes from China as its raw material during the POI.

These Chinese hollow steel pipes go into all of TSP's products, including its OCTG, SLP pipe, and seamless large-diameter pipe.³³⁷ Accordingly, the sales contracts, invoices, packing lists, mill test certificates, bills of lading, and Thai import declarations for several of TSP's POI

³²⁵ See September 24 Memorandum at Attachment 2; see also APP RFI.

³²⁶ *Id*; see also *SLP AD/CVD Orders*. APP also classified these entries under HTSUS numbers expressly denoted as SLP pipe in the *SLP AD/CVD Orders*.

³²⁷ See September 24 Memorandum at Attachment 2.

³²⁸ See APP RFI at Exhibit Entry-2, Exhibit Entry-6, and Exhibit Entry-7.

³²⁹ See also TSP RFI at 2-CPS-Q24-Sales List; see also APP RFI; see also TSP Verification Exhibits, dated December 15, 2025 (Verification Exhibits).

³³⁰ See Verification Report at 1.

³³¹ *Id*; see also Verification Exhibits; see also TSP RFI; see also APP RFI.

³³² See Verification Report at 4.

³³³ See TSP RFI at F-TSP-RFI Answer, page 3.

³³⁴ See Verification Report at 4. They also stated they do not have a piercing machine and so never use solid billets.

³³⁵ See Verification Exhibits at Exhibit 2, page 19.

³³⁶ See Verification Report at 4, 11, 16; see also TSP RFI at F-TSP-RFI Answer, page 11.

³³⁷ See Verification Report at 4; see also Verification Exhibits 3-7.

exports of seamless large-diameter pipe to APP and of SLP pipe to other companies indicate that TSP used hollow steel pipes from China in those products.³³⁸

TSP performed some additional production steps in Thailand on those Chinese hollow steel pipes; however, those tasks did not change the seamless large-diameter pipe's, OCTG's, and SLP pipe's country of origin; as such, they remain Chinese-origin merchandise. Thus, TSP's OCTG and SLP Pipe remain Chinese-origin for the same reasons PET's OCTG and SLP pipe remained Chinese-origin.

First, the physical characteristics of the Chinese hollow steel billets that PET used in its OCTG and SLP pipe were within the scope of the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders* when PET imported them into Thailand.³³⁹ TSP's raw material (hollow steel pipes) is similar to PET's hollow steel billets in that they are also hollow, seamless, made of steel, are pipes with a circular cross section, are from China, are equal or less than 406.4 mm in outside diameter if for OCTG or SLP pipe, and do not meet any of the exclusions mentioned in the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders*.³⁴⁰ Thus, any OCTG or SLP pipe derived from TSP's raw material is likewise covered by the *OCTG AD/CVD Orders* or *SLP AD/CVD Orders*.

Second, any additional tasks PET performed on the Chinese hollow steel billets in Thailand did not change their country of origin.³⁴¹ CBP discussed each additional task PET performed in its EAPA 7890 determination and in the earlier part of this determination. Likewise, none of the production steps TSP performs on the hollow steel pipes transforms them from one product to another or removes them from the scope of the *OCTG AD/CVD Orders* or *SLP AD/CVD Orders*.³⁴² The following is a list of production steps TSP claims to perform on the Chinese hollow steel pipes in Thailand:

1. Raw Material Inspection – TSP inspecting the dimension, length, and diameter of its raw materials (hollow steel pipes) does not alter their physical characteristics in any way and so does not affect whether they are in or out of the scopes of the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders*.³⁴³ When TSP takes some sample material from its raw materials and conducts a chemical composition check, that may affect the sample piece; however, the remaining portion of the pipe is unaffected if it is still used for further production.³⁴⁴

2. [[production steps](#)

³³⁸ See Verification Exhibits at Exhibit 3, pages 1-41; Exhibit 4, pages 1-34; Exhibit 5, pages 9-25, 36-50, 57-74, 83-90, 94-101, 104-108; Exhibit 6, pages 13-23, 26-28, 36-42; and Exhibit 7, pages 15-33, 38-47, 50-55, 63-68.

³³⁹ See September 24 Memorandum at Attachment 42, which contains EAPA 7890's determination notice.

³⁴⁰ See Verification Report at 4, 11, 16; see also *OCTG AD/CVD Orders*; see also *SLP AD/CVD Orders*.

³⁴¹ *Id.*

³⁴² See Verification Report at 7-9; see also Verification Exhibits at Exhibit 12.

³⁴³ See Verification Exhibits at Exhibit 12; see also *OCTG AD/CVD Orders*; see also *SLP AD/CVD Orders*.

³⁴⁴ See Verification Report at 7.

³⁴⁵ See Verification Exhibits at Exhibit 12.

3.

production steps

4.

5.

³⁴⁶ See Verification Report at 7; *see also* Verification Exhibits at Exhibit 2, page 6.

³⁴⁷ *Id.*

³⁴⁸ *Id.*

³⁴⁹ See *SLP AD/CVD Orders*.

³⁵⁰ See Verification Report at 7; *see also* Verification Exhibits at Exhibit 12.

³⁵¹ See September 24 Memorandum at Attachment 41, pages 4, 7-8, 19, 22, and Attachment 42, page 24.

³⁵² See *Bell Supply Company, LLC v. United States*, 393 F. Supp. 3d 1229 (CIT July 22, 2019) (*Bell Supply*).

³⁵³ See Verification Report at 8, 21-22.

³⁵⁴ See Verification Exhibits at Exhibit 12.

6.

7.

production steps

8.

9.

10.

³⁵⁵ See OCTG AD/CVD Orders; see also SLP AD/CVD Orders.

³⁵⁶ See Verification Report at 8; see also Verification Exhibits at Exhibit 12. Cf. September 24 Memorandum at Attachment 42, pages 11, 23, 26.

³⁵⁷ See OCTG AD/CVD Orders; see also SLP AD/CVD Orders.

³⁵⁸ See Verification Report at 8, 23-24; see also Verification Exhibits at Exhibit 12. Cf. September 24 Memorandum at Attachment 42, page 24 in which “PET claimed that it performed [] on the hollow steel billets to ensure that the [product description]. However, this step would only affect the hollow steel billets’ [product description]; therefore, it would not affect whether the hollow steel billets were in or out of the scope of the AD/CVD Orders.”

³⁵⁹ See OCTG AD/CVD Orders; see also SLP AD/CVD Orders.

³⁶⁰ See Verification Exhibits at Exhibit 12.

³⁶¹ See OCTG AD/CVD Orders; see also SLP AD/CVD Orders.

³⁶² See Verification Exhibits at Exhibit 12.

³⁶³ See OCTG AD/CVD Orders; see also SLP AD/CVD Orders.

11.

12.

13.

14.

production steps

15.

16.

.]

17. Finished Products – Packing, storing, and shipping finished products does not alter the physical characteristics of the hollow steel pipes in any way and so does not affect

³⁶⁴ See Verification Exhibits at Exhibit 12.

³⁶⁵ See OCTG AD/CVD Orders; see also SLP AD/CVD Orders.

³⁶⁶ See Verification Report at 8.

³⁶⁷ See Verification Exhibits at Exhibit 12.

³⁶⁸ *Id.*; see also Verification Report at 8; see also September 24 Memorandum at Attachment 42, pages 8, 23.

³⁶⁹ See Verification Report at 8; see also September 24 Memorandum at Attachment 42, pages 9, 23.

³⁷⁰ See OCTG AD/CVD Orders; see also SLP AD/CVD Orders.

³⁷¹ See Verification Exhibits at Exhibit 12.

³⁷² See OCTG AD/CVD Orders; see also SLP AD/CVD Orders.

whether they are in or out of the scopes of the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders*.

The previous evidence shows that the production steps TSP takes on the Chinese hollow steel pipes it exports as OCTG and SLP pipe do not change the pipe to another product and do not remove them from the scopes of the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders*.

Seamless large-diameter pipe is a kind of SLP pipe; however, it is not covered by the *SLP AD/CVD Orders* because its outer diameter exceeds 406.4 mm.³⁷³ Like SLP pipe, seamless large-diameter pipe is covered by the API 5L standard.³⁷⁴ Also like SLP pipe, TSP's seamless large-diameter pipe uses hollow steel pipes from China as its raw material.³⁷⁵ TSP stated that its seamless large-diameter pipe uses the same steel grade of hollow steel pipe that SLP pipe uses.³⁷⁶ TSP explained that seamless large-diameter pipe has the same general production process as SLP pipe; the main difference being that TSP's larger raw material pipes are [description of process] process, whereas its smaller raw material pipes go through its [description] process.³⁷⁷ As noted, TSP's production steps on the hollow steel pipes it used for SLP pipe do not affect the country of origin. Because TSP performs the same general production steps on its seamless large-diameter pipes, the production steps it performs on hollow steel pipes used in their large-diameter steel pipes do not affect their country of origin. As a reference point, the above production steps would not change the seamless large-diameter pipes' country of origin if they were covered by the *SLP AD/CVD Orders*.

Furthermore, TSP classified the hollow steel pipes it imported from China under the same HTS chapter and heading (7304) – covering “Tubes, pipes and hollow profiles, seamless, of iron (other than case iron) or steel” – that APP classified the seamless large-diameter pipes under when they entered the United States.³⁷⁸ The fact they have the same HTS chapter and heading shows that the hollow steel billets and large-diameter pipes were similar when imported from China and from Thailand, respectively. Finally, as noted in this notice's adverse inferences section, CBP is also applying an adverse inference against TSP and considering all its POI merchandise to be of Chinese origin. Thus, because of the above evidence and because of the adverse inference, CBP finds that the seamless large-diameter pipes TSP exported to APP during the POI are Chinese-origin merchandise. Because APP's five entries were incorrectly declared to be Thai-origin, CBP will correct their country of origin.

Yifan Shipping

Yifan Shipping Thailand was one of the freight forwarders TSP and PET used.³⁷⁹ Yifan Shipping Thailand has advertised its willingness to facilitate transshipment in a press release:

³⁷³ *Id.*

³⁷⁴ See, e.g., Verification Exhibits at Exhibit 3, pages 46, 50, 64, 67; Exhibit 4, pages 50, 94; Exhibit 5, page 2; and Exhibit 6, page 5; see also September 25 Memorandum at 7-8.

³⁷⁵ See Verification Report at 4.

³⁷⁶ *Id.*

³⁷⁷ *Id.* at 4, 7.

³⁷⁸ See Verification Exhibits at Exhibit 3, pages 7-9, 20-22, 31-33, 39; see also APP Written Arguments at 12; see also APP RFI at Exhibit Entries-12-15; see also <https://hts.usitc.gov/search?query=7304>.

³⁷⁹ See TSP RFI at F-TSP-RFI Answer, page 3; see also September 24 Memorandum at Attachment 39, pages 32-33.

“{c}ustomers looking to ship Chinese products to the US can reroute the cargo to Thailand and depart from here, alleviating the US’s trade embargo policy for Chinese products.”³⁸⁰ Correspondingly, EAPA 7890’s determination outlined how Yifan Shipping Thailand and its affiliates Yantai Yifan International Logistics Co., Ltd. (Yifan China), Yifan Shipping (Singapore) Pte Ltd. (Yifan Shipping Singapore), and Yifan Shipping (USA) Co., Ltd. (Yifan Shipping USA) facilitated PET’s transshipment by their involvement in each [description] of PET’s merchandise.³⁸¹

The POI of EAPA investigation 7890 substantially overlaps with this investigation; thus, Yifan Shipping Thailand’s role in PET’s transshipment is still applicable in this investigation.

Regarding that role, Yifan Shipping Thailand first [description of process].³⁸² As such, Yifan Shipping Thailand appeared on [description of shipping].³⁸³ After their [description], Yifan Shipping Thailand acted as [declaration process].³⁸⁴ Yifan Shipping Thailand then [transportation process].³⁸⁵

Yifan Shipping Thailand and Yifan Shipping Singapore then [shipping process].³⁸⁶ As such, Yifan Shipping Thailand [process description] and acted as PET’s agent on bills of lading to its U.S. customers.³⁸⁷ Corroborating that, Yifan Shipping was listed as an [] submitted for one of its entries from PET.³⁸⁸ Yifan Shipping Singapore provided PET’s [transportation process].³⁸⁹ Once the OCTG was in the United States, [shipping process].³⁹⁰

With reference to TSP, Yifan Shipping Thailand transports TSP’s pipes from its factory to Thailand’s Laem Chabang Port.³⁹¹ Then, Yifan Shipping Thailand “selects and books the vessel, prepares the Thai Customs Clearance documents, and Thai Export Declaration documents.”³⁹²

³⁸⁰ See June 12 Memorandum at Attachment 12, page 5. Correspondingly, the [description] in Attachment 11 also [process of shipping], and others.

³⁸¹ See September 24 Memorandum at Attachment 42, pages 33-35.

³⁸² *Id.* at Attachment 39, pages 32-33, 1193, 1213, 1362, 1364, 1366, 1369, 1372, 1452-1453, 1487, 1489, 1491-1493, 1495, and Attachment 41, page 27.

³⁸³ *Id.* at Attachment 39, pages 1193, 1362, 1364, 1366, 1369, 1372.

³⁸⁴ *Id.* at Attachment 39, pages 32-33, 1213, 1475-1476, 1487, 1489, 1491-1493, 1495, 1497; *see also* NOI at 16.

³⁸⁵ See September 24 Memorandum at Attachment 39, pages 32-33.

³⁸⁶ *Id.* at Attachment 41, page 27.

³⁸⁷ *Id.* at Attachment 39, pages 541, 564, 583, 602, 623, 642, 644, 669, 700, 727, 749, 779, 810, 830, 852, 883, 887, 913; *see also* NOI at 16, 18-19.

³⁸⁸ See [description], page 8.

³⁸⁹ See September 24 Memorandum at Attachment 39, page 33.

³⁹⁰ *Id.* at Attachment 39, page 642.

³⁹¹ See Verification Report at 11.

³⁹² *Id.*; *see also* TSP RFI for instances listing Yifan Shipping Thailand on vessel booking documents and export documents.

Finally, after the pipes arrive in the United States, Yifan Shipping USA “sometimes handles the customs clearances processes in the U.S.”³⁹³

Adverse Inferences

CBP’s regulations at 19 C.F.R. § 165.6(a) state that if “the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a request for information made by CBP, CBP may apply an inference adverse to the interests of that party in selecting from among the facts otherwise available to make the determination as to evasion....”³⁹⁴ The importers GY Fleet, Leadtop/GME Trade Ease, and USA Lee Long and the exporters PET, VM Industry, Soap Steel, and TSP failed to cooperate and comply to the best of their abilities with CBP’s requests for information. As such, CBP is applying inferences adverse to the interests of each of these importers and exporters and selecting from among the facts otherwise available to make its determination.

CBP issued an RFI to GY Fleet on June 18, 2025.³⁹⁵ However, GY Fleet did not respond by the July 2, 2025 deadline. CBP reminded GY Fleet that the RFI deadline passed and extended the deadline until July 8, 2025.³⁹⁶ GY Fleet did not respond by that deadline either; therefore, CBP again reminded GY Fleet that its RFI deadline passed and extended the deadline until July 14, 2025.³⁹⁷ In spite of these reminders and deadline extensions, CBP did not receive any response from GY Fleet.³⁹⁸ Thus, GY Fleet failed to cooperate and comply to the best of its ability with CBP’s request for information.

On June 18, 2025, CBP issued RFIs to GME Trade Ease and Leadtop.³⁹⁹ When it issued the RFIs, CBP explained in its emails to GME Trade Ease and Leadtop how to bracket business confidential information and how to create a business confidential version and a public version.⁴⁰⁰ After granting GME Trade Ease and Leadtop three RFI response extensions, CBP received their RFI responses on July 29, 2025.⁴⁰¹ Later that day, CBP reviewed these RFI responses and then explained to GME Trade Ease and Leadtop via email that their responses’ business confidential versions did not contain brackets around their business confidential information, and that they did not provide public versions.⁴⁰² In those emails, CBP also rejected GME Trade Ease’s and Leadtop’s RFI responses as nonconforming submissions pursuant to 19 C.F.R. § 165.4(b).⁴⁰³ Nevertheless, CBP gave GME Trade Ease and Leadtop another

³⁹³ See Verification Report at 11; *see also* TSP RFI for instances listing Yifan Shipping USA as the destination agent for arrival.

³⁹⁴ *See also* 19 U.S.C. § 1517(c)(3)(A).

³⁹⁵ *See* CBP Email, “Email CBP RFI For GY Fleet,” dated June 18, 2025.

³⁹⁶ *See* September 24 Memorandum at Attachment 18, pages 1-2.

³⁹⁷ *Id.* at Attachment 18, page 1.

³⁹⁸ *Id.* at Attachment 19. This attachment contains an email in which the broker [[description](#)] GY Fleet email address that CBP emailed the RFIs to.

³⁹⁹ *See* CBP Email, “Email CBP RFI For GME Trade Ease,” dated June 18, 2025; *see also* CBP Email, “Email CBP RFI For Leadtop,” dated June 18, 2025.

⁴⁰⁰ *Id.*

⁴⁰¹ *See* CBP Email, “Emails to GME Trade Ease Regarding Bracketing Issues,” dated August 1, 2025; *see also* CBP Email, “Emails to Leadtop Regarding Bracketing Issues,” dated August 1, 2025.

⁴⁰² *Id.*; *see also* 19 C.F.R. § 165.4(a).

⁴⁰³ *Id.*

opportunity to submit those public versions and corrected business confidential versions by July 31, 2025 and explained again how to create a public version and how to bracket business confidential information in the business confidential version.⁴⁰⁴ GME Trade Ease and Leadtop did not respond by that deadline, so CBP again reminded them that the deadline had passed and gave them an additional opportunity to submit their public versions and corrected business confidential versions by August 4, 2025.⁴⁰⁵ In spite of these reminders and extensions, CBP did not receive any further responses from GME Trade Ease or Leadtop, nor did they resubmit their RFI responses. Thus, GME Trade Ease and Leadtop failed to cooperate and comply to the best of their abilities with CBP's requests for information.

Although USA Lee Long responded to CBP's RFIs, it made several false statements to CBP concerning its relationship with [name], relationship and communication with [company name], and its relationship and communication with [] and his email address.⁴⁰⁶ These false statements and their context were discussed in detail in the preceding USA Lee Long section. Because USA Lee Long made these false statements, it did not cooperate to the best of its ability with CBP's requests for information.⁴⁰⁷

Importer Summary

CBP is drawing several inferences that are adverse to the interests of GY Fleet, Leadtop/GME Trade Ease, and USA Lee Long. First, CBP is inferring that all OCTG and SLP pipe they entered from PET, Soap Steel, and VM Industry during the POI were Chinese-origin OCTG or SLP pipe.⁴⁰⁸ To draw this adverse inference, CBP is relying on factual information on the record, including the facts that:

- Several CF-28 responses indicate that VM Industry exported PET's merchandise.⁴⁰⁹
- The cargo exam for Soap Steel's last export ([description of exam] merchandise).⁴¹⁰
- The Allegations that PET's SLP pipe was Chinese-origin SLP pipe and evidence that PET's SLP pipe used Chinese hollow steel billets.⁴¹¹
- The EAPA 7890 determination that OCTG imported from PET was Chinese-origin OCTG subject to the *OCTG AD/CVD Orders*.⁴¹²

Second, CBP is inferring that any drill pipe GY Fleet, Leadtop/GME Trade Ease, and USA Lee Long entered from PET, Soap Steel, and VM Industry was misclassified OCTG covered by the *OCTG AD/CVD Orders*. To draw this adverse inference, CBP is relying on factual information on the record, namely, the cargo exam CBP performed on GME Trade Ease's drill pipe shipment

⁴⁰⁴ *Id.*

⁴⁰⁵ *Id.*

⁴⁰⁶ See USA Lee Long SRFI 2 at 9, 15-17.

⁴⁰⁷ See 19 U.S.C. § 1517(c)(3); see also 19 C.F.R. § 165.5(b)(3) and § 165.6.

⁴⁰⁸ See 19 U.S.C. § 1517(c)(3); see also 19 C.F.R. § 165.6.

⁴⁰⁹ See Leadtop CF-28 Response – VM Industry; see also USA Lee Long CF-28 Response – VM Industry.

⁴¹⁰ See September 24 Memorandum at Attachment 3.

⁴¹¹ See Allegations; *supra* Figure 1.

⁴¹² See USA Lee Long CF-28 Response – VM Industry; see also Leadtop CF-28 Response – VM Industry; see also Allegations; see also September 24 Memorandum at Attachment 42.

from PET, which contained misclassified OCTG.⁴¹³ Cargo exams on other shipments from MH Megah and Siam Steel Materials likewise contained OCTG from PET that was misclassified as drill pipe.⁴¹⁴

Third, CBP is inferring that GY Fleet's, Leadtop/GME Trade Ease's, and USA Lee Long's OCTG and SLP pipe entries from PET, Soap Steel, and VM Industry are undervalued. To draw this adverse inference, CBP is relying on factual information on the record derived from a comparison of these entries' values to the values of the same merchandise listed in United States International Trade Commission's (USITC) Dataweb (discussed below).⁴¹⁵ CBP will revalue any resulting undervalued entries; however, any entries that do not appear to be undervalued in the comparison calculations will not be revalued.

USA Lee Long provided invoices and entry summaries but it did not provide any other documents, such as payment information, to substantiate the accuracy of its entry values.⁴¹⁶ USA Lee Long did not provide payment information because it did participate in the sales negotiation or purchase of the entries' merchandise.⁴¹⁷ As such, CBP did not receive sufficient valuation documents and was forced to ascertain USA Lee Long's entry values by another method. In addition, although USA Lee Long did not have the right to make entry, it is nonetheless responsible for all false valuations in its entry declarations and for paying all resulting duties derived from the adjusted values.

As shown in Appendix I, CBP divided USA Lee Long's declared entry values by their respective weights to obtain each entry's value per kg.⁴¹⁸ Then, CBP obtained from the USITC Dataweb system the customs values and weights of POI imports that entered the United States from Thailand under the HTSUS numbers that USA Lee Long entered the merchandise under.⁴¹⁹ The USITC Dataweb system provided these figures in a monthly format, so CBP divided each POI month's customs value by its respective monthly weight to obtain its value per kg.⁴²⁰ CBP then calculated the POI's average value per kg for all the OCTG HTSUS numbers combined together and for each of the [#] SLP pipe HTSUS numbers USA Lee Long used.⁴²¹ CBP then compared USA Lee Long's entry values per kg to the average values per kg derived from USITC

⁴¹³ *Id.*; see also June 12 Memorandum at Attachment 8.

⁴¹⁴ See June 12 Memorandum at Attachments 5-7.

⁴¹⁵ See January Memorandum at Attachment 7.

⁴¹⁶ See USA Lee Long RFI at Exhibits V.18.1-18.15.

⁴¹⁷ *Id.* at 14-15, 17-19, 22.

⁴¹⁸ See September 24 Memorandum at Attachment 2. The USITC Dataweb benchmark only listed "kilograms" for weight. As such, CBP is uncertain whether it used the shipments' gross weights or net weights. To be fair, and out of an abundance of caution, CBP used USA Lee Long's net weights, which are lower than its gross weights, and therefore, produce a somewhat higher value per kg in the calculations than the use of gross weights would.

⁴¹⁹ See January Memorandum at Attachment 7.

⁴²⁰ *Id.*

⁴²¹ *Id.* USA Lee Long claimed that two of its entries contained drill pipe. As noted elsewhere, these entries actually contained misclassified OCTG. Because these entries were originally declared to be SLP pipe, CBP does not have sufficient evidence to know exactly which OCTG HTSUS number is most appropriate for these two entries. As such, CBP calculated an OCTG benchmark derived from averaged values per kg from all OCTG HTSUS numbers listed in the *OCTG AD/CVD Orders*. Ultimately, CBP found that these two entries were not undervalued. See NOI at 10; see also USA Lee Long CF-28 Response – VM Industry at 7.

Dataweb's Thai import figures.⁴²² The result of the comparison indicates that USA Lee Long undervalued most of its entries.⁴²³ For example, USA Lee Long entries 1309, 0903, 3402, 9516, 6065, 6099, and 4697 were valued at \$[#] per kg. However, U.S. imports of SLP Pipe from Thailand under the same HTSUS number were valued at \$[#] per kg on average.⁴²⁴ In light of these undervalued entries, CBP will revalue USA Lee Long's entry values as indicated in Appendix I and assess AD/CVD duties accordingly.

GY Fleet entered seven entries of SLP pipe and seamless large-diameter pipe from PET and VM Industry.⁴²⁵ CBP did not receive payment information from GY Fleet concerning these entries' merchandise because GY Fleet did not respond to the RFI CBP issued.⁴²⁶ As such, CBP does not have sufficient information to substantiate the accuracy of GY Fleet's entry values. Therefore, CBP compared the value per kg of those entries to the USITC Dataweb information (Appendix II) in the same manner it compared USA Lee Long's entry values to benchmark entry values derived from USITC Dataweb.⁴²⁷ This comparison showed that GY Fleet undervalued all its entries. For example, the declared value per kg of entries 2331 and 2349 were only \$[#] per kg; whereas the average value per kg for all POI shipments from Thailand under the same HTSUS number was \$[#] per kg.⁴²⁸ Thus, GY Fleet undervalued its entries and, as a result, CBP will revalue these entries as indicated in Appendix II.

As a side note, APP provided valuation comments on entry 8529 from PET that corroborate GY Fleet's undervaluation of that entry.⁴²⁹ Although helpful for illustrative purposes, CBP is not using APP's valuation comments as a benchmark because those comments pertain to only one entry and contained incomplete weight information that inhibits calculating a comparison value per kg for that entry.⁴³⁰ That being said, APP issued purchase order numbers [numbers], both of which were listed on GY Fleet entry 8529's invoice and packing list as the purchase orders underlying the entry.⁴³¹ APP purchase order [#] did not list weights for each pipe size, but two of its item lines measured [measurement] mm and [measurement] mm, which matched two of the four item lines listed on entry 8529's invoice and packing list.⁴³²

⁴²² See January Memorandum at Attachment 7.

⁴²³ They did not undervalue 10 of the entries.

⁴²⁴ *Id.* This \$[#] amount includes entries from all Thai exporters. As such, it also includes undervalued entries from PET and so the benchmark is somewhat lower than the entries' true value. However, because USITC Dataweb is a U.S. government system, CBP judges it is the most reasonable measure of valuation available for this investigation. Further, even though this benchmark is somewhat lower than a hypothetical benchmark that does not include PET's undervalued entries, undervaluation is still demonstrated in USA Lee Long's entry values when compared to this benchmark.

⁴²⁵ See September 24 Memorandum at Attachment 2; *see also* GY Fleet Allegation at Exhibit 3.

⁴²⁶ GY Fleet responded to CBP's CF-28 requests but not to the RFI that CBP issued.

⁴²⁷ See September 24 Memorandum at Attachment 2; *see also* January Memorandum at Attachment 7.

⁴²⁸ *Id.*

⁴²⁹ See APP Valuation Comments.

⁴³⁰ *Id.*

⁴³¹ See September 25 Memorandum at 8; *see also* APP Valuation Comments. APP issued these purchase orders to [name].

⁴³² See APP Valuation Comments at 18-20, 23-25; *see also* September 25 Memorandum at 7-8. The purchase order listed a total weight for all items it contained, but it did not list the weights of the individual items; some of these items were not in the GY Fleet entry.

APP's purchase order valued these two items at \$[#] whereas GY Fleet's entry invoice valued them at \$[#].⁴³³

The other APP purchase order, number [#], lists the SLP pipe's weight as [#] kg, which is almost the same as GY Fleet's declared weight for the SLP pipe, [#] kg.⁴³⁴ The purchase order and GY Fleet's invoice both list SLP pipe with the same dimensions as well, [measurement] mm.⁴³⁵ The purchase order and the invoice [#] issued to APP in response to purchase order [#] valued the merchandise at \$[#]; however, GY Fleet declared its value as only \$[#].⁴³⁶ Thus, APP's purchase orders corroborate that GY Fleet drastically undervalued entry 8529's merchandise.

CBP did not receive the requested payment information from Leadtop and GME Trade Ease, because they did not cooperate to the best of their abilities with CBP's requests for information.⁴³⁷ Thus, CBP does not have payment-related documents to substantiate the accuracy of Leadtop's and GME Trade Ease's entry values. Nevertheless, CBP compared the value per kg of Leadtop and GME Trade Ease's entries from PET and VM Industry to the value per kg of POI Thai shipments (see Appendix III) in the same manner CBP performed its comparisons on USA Lee Long's and GY Fleet's entries.⁴³⁸ This comparison indicated that Leadtop/GME Trade Ease undervalued all their entries of SLP pipe and OCTG. For example, Leadtop/GME Trade Ease entries 8350 and 8393 were valued at \$[#] and \$[#] per kg, respectively, whereas shipments from Thailand under the same HTSUS numbers were valued at \$[#] and \$[#] per kg, respectively, on average.⁴³⁹ Thus, Leadtop/GME Trade undervalued its entries and, as a result, CBP will revalue them as indicated in Appendix III and assess AD/CVD duties accordingly.

Although CBP is applying these adverse inferences with respect to USA Lee Long, GY Fleet, and Leadtop/GME Trade Ease, enough evidence exists on the record to determine that there is evasion without its use.

⁴³³ See APP Valuation Comments at 18-19, 23-24. APP purchase order [#] did not list the weight of the pipes with the two dimensions. See also September 25 Memorandum at 8.

⁴³⁴ See APP Valuation Comments at 12. This amount was gross weight and was converted from [#] to kg. See also September 25 Memorandum at 8.

⁴³⁵ *Id.* APP originally listed the dimensions in imperial units at [measurement].

⁴³⁶ *Id.* at 12-13; see also September 25 Memorandum at 6, 8. The [name] invoice also valued them at \$[#] basis, which still indicates GY Fleet made a large undervaluation.

⁴³⁷ Leadtop and GME Trade Ease submitted CF-28 responses that did not provide most of the information CBP requested. See Leadtop CF-28 Response – VM Industry; see also Leadtop CF-28 Response – PET; see also GME Trade Ease CF-28 Response; see also NOI at 9-12. Leadtop and GME Trade Ease also submitted unbracketed RFI responses. However, they did not respond to CBP's multiple requests to bracket those RFI responses and create public versions. Thus, CBP has rejected their RFI responses as non-conforming submissions pursuant to 19 C.F.R. § 165.4(b). See CBP Email, "Emails to GME Trade Ease Regarding Bracketing Issues," dated August 1, 2025; see also CBP Email, "Emails to Leadtop Regarding Bracketing Issues," dated August 1, 2025.

⁴³⁸ See September 24 Memorandum at Attachment 2; see also January Memorandum at Attachment 7.

⁴³⁹ *Id.*

Adverse Inference on TSP

TSP made several false statements in its RFI responses and during verification. In these false statements, TSP denied being affiliated with any other company multiple times:

1. “There is no affiliated facilities or offices for TSP.”⁴⁴⁰
2. “TSP is not a group company.”⁴⁴¹
3. “TSP is not under ‘common control’ with another person by a third person.”⁴⁴²
4. “TSP is not affiliated with another producer that manufacturers or has potential to manufacture the covered merchandise.”⁴⁴³
5. “No companies is {sic} affiliated with TSP in other countries other than Thailand.”⁴⁴⁴
6. “We don’t have any affiliate, We are the manufacture {sic}.”⁴⁴⁵

However, several pieces of evidence indicate TSP is affiliated with multiple companies, including Wuxi Huayou Special Steel Co., Ltd (Wuxi Huayou), and so contradict TSP’s assertions. First, three of TSP’s four shareholders reside in Wuxi City, China; the fourth shareholder [individual name] resides in an unknown part of China also.⁴⁴⁶ Second, TSP referred to Wuxi Huayou as its “long-standing cooperative partner,” which is consistent with it being a TSP affiliate.⁴⁴⁷ Third, TSP’s questionnaire response to Commerce included a 2023 financial statement listing “Long-term loans from parent company” in its “Long-term loan from related parties” section.⁴⁴⁸ TSP’s RFI response to CBP also included a [year] financial statement listing “[company description]” in the “[company description]” section.⁴⁴⁹ During verification, TSP claimed that was due to a mistranslation and referred to a close-but-not-related company.⁴⁵⁰ TSP also stated in its supplemental RFI response that Wuxi Huayou provided it with an interest-free loan.⁴⁵¹ However, the provision of an interest-free loan from one company to another in the same kind of business is consistent with an affiliated company.

Fourth, many of TSP’s employees also work for Wuxi Huayou and reside in Wuxi City, China. The following is a list of TSP employees affiliated with Wuxi Huayou:

1. The LinkedIn profile of [], a TSP employee present at verification, indicates she worked for Wuxi Huayou from 2010-2018.⁴⁵²

⁴⁴⁰ See TSP RFI at F-TSP-RFI Answer, page 1.

⁴⁴¹ *Id.* at F-TSP-RFI Answer, page 3.

⁴⁴² *Id.*

⁴⁴³ *Id.*

⁴⁴⁴ *Id.*

⁴⁴⁵ *Id.* at F-TSP-RFI Answer, page 8.

⁴⁴⁶ *Id.* at F-TSP-RFI Answer, page 2; *see also* Verification Report at 5.

⁴⁴⁷ See TSP SRFI at E-Supplemental RFI Questions, page 5.

⁴⁴⁸ See December Memorandum at Attachment 8, page 22.

⁴⁴⁹ See TSP RFI at 3-ACT-Q02-Financial Report.

⁴⁵⁰ See Verification Report at 6.

⁴⁵¹ See TSP SRFI at E-Supplemental RFI Questions, page 5.

⁴⁵² See Verification Report at 3, 13, 15.

2. []’s Chinese LinkedIn profile (*i.e.* its URL begins with cn.linkedin.com) indicates she works for TSP, has a TSP email domain [email address], and resides in Wuxi City, China.⁴⁵³
3. [individual name]’s Chinese LinkedIn profile indicates he works as an export salesperson for TSP and Wuxi Huayou and resides in Wuxi City, China.⁴⁵⁴
4. [individual name]’s Chinese LinkedIn profile indicates she works as a sales manager for TSP and Wuxi Huayou and resides in Wuxi City, China.⁴⁵⁵
5. [name]’s Chinese LinkedIn profile indicates he is a senior manager for TSP and Wuxi Huayou and resides in Wuxi City, China.⁴⁵⁶

During verification, TSP claimed that “[individual names] did not work for TSP but they are promoters of TSP and work for Wuxi Huayou.”⁴⁵⁷ However, [individual name]’s LinkedIn profile lists an email address for her that has a TSP email domain, [email address], which indicates she is a TSP employee rather than a mere TSP promoter.⁴⁵⁸ Moreover, [individual names]’s LinkedIn profiles explicitly listed them working for TSP in addition to Wuxi Huayou. For example, [name]’s profile stated “Senior Manager at TSP Precision Steel Tube Manufacturing (Thailand) Co., Ltd.& Wuxi Huayou Special Steel Co.,LTD{.}”⁴⁵⁹

The LinkedIn profile of [individual name], also known as [], indicates he has been TSP’s general manager since December 2016.⁴⁶⁰ Another website also lists him as TSP’s general manager, denotes he resides in Wuxi City, China, and indicates the website “wxhytg.com” for him.⁴⁶¹ That is Wuxi Huayou’s website address and so connects [individual name] to Wuxi Huayou.⁴⁶² Additionally, [individual name]’s LinkedIn profile displays a photograph of a trade show stand in which TSP’s and Wuxi Huayou’s logos are in the background near each other.⁴⁶³ This proximity suggests a connection between the two companies. TSP’s logo and

Wuxi Huayou’s logo also have several common elements that suggest a connection: both logos include a fuchsia-colored diamond within two circles, both logos’ circles are blue, and both logos’ outer circle is thicker than the inner circle.



⁴⁵³ See December Memorandum at Attachment 10, pages 83-85.

⁴⁵⁴ *Id.* at Attachment 11, pages 44-45.

⁴⁵⁵ *Id.* at Attachment 10, pages 72-74.

⁴⁵⁶ *Id.* at Attachment 10, pages 87, 89.

⁴⁵⁷ See Verification Report at 6.

⁴⁵⁸ See December Memorandum at Attachment 10, pages 71, 73.

⁴⁵⁹ *Id.* at Attachment 10, page 88.

⁴⁶⁰ *Id.* at Attachment 10, page 70. TSP was registered in Thailand on October 16, 2016. *Id.* at Attachment 19, pages 95, 97-99.

⁴⁶¹ *Id.* at Attachment 10, page 93.

⁴⁶² *Id.* at Attachment 10, page 100, and Attachment 11, pages 1-2, 9.

⁴⁶³ *Id.* at Attachment 10, page 71. Above the trade show photograph, it states, “Welcome to Our Company!!! Seamless Pipe and Tube in Thailand.”

Fifth, the website of a Chinese pipe supplier in Tianjin, China named Tianjin Huajin Pipeline Engineering Co., Ltd. (Huajin Pipeline) made a statement indicating its affiliation to TSP: “{i}n Wuxi, China factory ‘SP.Steel Tube’, and in Thailand (TSP), the United States (USPE), Dubai (UHY) and other countries and regions set up factories and branches.”⁴⁶⁴ Its website also displays the same diamond-H logo Wuxi Huayou uses and describes relying on Wuxi Huayou to “jointly develop domestic and foreign markets.”⁴⁶⁵



Finally, several online sources explicitly refer to TSP’s affiliation with Wuxi Huayou. [individual name]’s LinkedIn profile indicates he is a salesperson for Wuxi Huayou and states “{w}e established three production branches, two mills {sic} in China and one in Thailand.”⁴⁶⁶ Similarly, the “About Us” area of Wuxi Huayou’s LinkedIn profile likewise states, “{w}e established two production branches, HuaBei in China and TSP in Thailand.”⁴⁶⁷ Moreover, the “About Us” area of Wuxi Huayou’s website lists “TSP Mill.”⁴⁶⁸ Thus, evidence strongly indicates that TSP and Wuxi Huayou are affiliated companies, meaning that TSP made false statements about not being affiliated with any other companies. TSP appears to have made these false statements to distance itself from Wuxi Huayou, which is one of its main suppliers of hollow steel pipes from China.⁴⁶⁹



During verification, TSP also denied Wuxi Huayou is related to Wuxi Sp. Steel Tube Manufacturing Co. Ltd., also known as Wuxi Special Steel Co., Ltd. and HuaBei Steel Pipe Manufacturing Co., Ltd. (Wuxi Special Steel).⁴⁷⁰ However, several facts indicate Wuxi Special Steel is affiliated with Wuxi Huayou and TSP. The LinkedIn profile of Wuxi Huayou employee [individual name] lists Wuxi Special Steel at the same address, telephone, fax, and cell/WeChat numbers as Wuxi Huayou.⁴⁷¹ Wuxi Special Steel uses the same Wuxi Huayou diamond-H logo (see above).⁴⁷² A list of trade show participants lists Wuxi Special Steel’s contact email address at the same wxhytg.com domain Wuxi Huayou uses.⁴⁷³ A trade show booklet also describes them as: “Wuxi SP. Steel Tube Manufacturing Co., Ltd, a mill wholly owned by HUAYOU....”⁴⁷⁴ The “About Us” section of Wuxi Huayou’s website listed “Sp.Steel” {sic}, which indicates they are part of

⁴⁶⁴ *Id.* at Attachment 11, page 47.

⁴⁶⁵ *Id.* at Attachment 11, pages 46-47.

⁴⁶⁶ *Id.* at Attachment 11, page 14.

⁴⁶⁷ *Id.* at Attachment 11, pages 8-9.

⁴⁶⁸ *Id.* at Attachment 11, pages 1-2. Correspondingly, Wuxi Huayou’s LinkedIn profile stated the following about Thailand production near pipe production photographs: “#Precision# Thailand ... The magic {sic} warmed the steel, does Thailand steel warm you?” *Id.* at Attachment 11, page 11.

⁴⁶⁹ See Verification Exhibits at Exhibit 3, pages 14-17, 26-29; Exhibit 4, page 27; Exhibit 5, pages 11-13, 15, 18, 21-24, 37-40, 42-45; Exhibit 6, pages 14-16; and Exhibit 7, pages 19, 23-25, etc. Although some invoices and packing lists identified Wuxi Huayou as the manufacturer and Wuxi Huayou issued the mill test certificates and so appeared to test the pipes, TSP stated that Wuxi Huayou was a trading company, not a manufacturer, and sourced the pipes from other Chinese producers. See Verification Report at 6.

⁴⁷⁰ See Verification Report at 6; see also December Memorandum at Attachment 11, pages 36-37.

⁴⁷¹ See December Memorandum at Attachment 11, page 16.

⁴⁷² *Id.* at Attachment 11, page 37.

⁴⁷³ *Id.* at Attachment 11, page 21.

⁴⁷⁴ *Id.* at Attachment 11, page 23.

the same company group.⁴⁷⁵ Finally, Wuxi Huayou's LinkedIn profile states "{w}e established two production branches, HuaBei in china and TSP in Thailand."⁴⁷⁶ Thus, the above evidence indicates that Wuxi Special Steel, Wuxi Huayou, and TSP are affiliated companies.



Invoices and packing lists from TSP's questionnaire response to Commerce indicated TSP purchased Chinese hollow steel pipes from the United Arab Emirates (UAE) trading company UHY Pipe and Equipment FZE (UHY).⁴⁷⁷ During verification, TSP claimed it is not affiliated with UHY.⁴⁷⁸ Like Wuxi Huayou, UHY provided loans to TSP for everyday business operations, which is consistent with an affiliated company.⁴⁷⁹ Also, Wuxi Huayou listed one of UHY's addresses as an "Overseas Agent/Branch" on a business information website.⁴⁸⁰ [individual name]'s LinkedIn profile denotes he currently works for Wuxi Huayou, TSP, and UHY.⁴⁸¹ Wuxi Huayou affiliate Huajin Pipeline indicated affiliation with UHY, stating "{i}n Wuxi, China factory 'SP.Steel Tube', and in Thailand (TSP), the United States (USPE), Dubai (UHY) and other countries and regions set up factories and branches."⁴⁸² Moreover, Wuxi Huayou lists "UHY" in the "About Us" section of its website, which indicates they are part of the same company group.⁴⁸³ Thus, UHY is affiliated with Wuxi Huayou and TSP.

TSP officials stated they began purchasing pipes in May 2025 from another Thai producer, High Precision Steel (Thailand) Co., Ltd. (THP).⁴⁸⁴ TSP did not report THP as an affiliated company; however, evidence indicates they are affiliated. THP's and TSP's factory buildings both have blue numbers on them with blue circles around the numbers.⁴⁸⁵ THP's facility also has a blue "Welcome to THP" sign that matches the letter size and font style of TSP's blue "Welcome to TSP" sign.⁴⁸⁶ Further, CBP observed a calendar at TSP's facility that had "[name]" printed on its upper left corner and two very similar TSP and THP ovular company stamps near the bottom.⁴⁸⁷ THP's current facility sign and logo does not match TSP's facility sign and logo; however, a website advertising a THP job showed a picture of THP's previous facility sign, which matched the logo and sign format of TSP's facility sign.⁴⁸⁸

⁴⁷⁵ *Id.* at Attachment 11, page 2.

⁴⁷⁶ *Id.* at Attachment 11, page 8.

⁴⁷⁷ *Id.* at Attachment 8, pages 25-26, 28-29; *see also* Verification Exhibits at Exhibit 1, pages 49-50.

⁴⁷⁸ *See* Verification Report at 6.

⁴⁷⁹ *Id.* During verification, TSP mentioned another UAE trading company, Schengen International DMCC, that it purchased Chinese hollow steel billets from and that gave TSP a loan. *Id.* at 6, 11; *see also* Verification Exhibits at Exhibit 3, page 1, *etc.*

⁴⁸⁰ *See* December Memorandum at Attachment 11, pages 33, 42-43. That address is Office Number LB 10104 Jafza 10 Jebel Ali Free Zone Dubai UAE. UHY was listed at another UAE address too.

⁴⁸¹ *Id.* at Attachment 11, pages 44-45.

⁴⁸² *Id.* at Attachment 11, page 47.

⁴⁸³ *Id.* at Attachment 11, pages 1-2.

⁴⁸⁴ *See* Verification Report at 6. A shipment data website indicated THP imported several shipments from Wuxi Huayou. *See* December Memorandum at Attachment 2, pages 5-6.

⁴⁸⁵ *See* January Memorandum at Attachments 1, 11.

⁴⁸⁶ *Id.* at Attachment 1, pages 3-4, and Attachment 11.

⁴⁸⁷ *See* Verification Report at 6; *see also* January Memorandum at Attachment 10.

⁴⁸⁸ *See* January Memorandum at Attachment 2, page 7; *see also* December Memorandum at Attachment 10, page 45.



In its RFI response, TSP included the following statement by the U.S. importer Bri-steel Manufacturing (Bri-Steel):⁴⁸⁹

TSP Precision Steel Pipe Co. Ltd. is the only manufacturer in Thailand with the specialized equipment and technical expertise required to produce large-diameter seamless pipe. We have visited their facility and audited it many times as well as their new **Piercing Mill** they installed in January {emphasis added}.⁴⁹⁰

The fact that Bri-Steel mentioned a piercing mill is significant because TSP explicitly stated during verification that they do not have a piercing mill.⁴⁹¹ During verification, TSP stated “Bri-steel saw a piercing machine at a new facility in Rayon owned by High Precision Steel (Thailand) Co., Ltd. (THP), which is 2 kilometer from TSP.”⁴⁹² However, Bri-Steel “audited” TSP’s facilities many times and would have likely been aware of any connection between TSP and THP. Further, TSP [individual names] in Bri-Steel, which indicates Bri-Steel has a connection to TSP and so was aware of THP’s affiliation with TSP.⁴⁹³

Further corroborating THP’s and TSP’s affiliation, [individual name]’s LinkedIn profile denotes “TSP Precision Steel Tube Manufacturing (Thailand) Co., Ltd. & High Precision Tube (Thailand) Co., Ltd.” together and also states “TSP & THP partners with you for success{.}”⁴⁹⁴ The LinkedIn profile of [individual], a senior manager for TSP and Wuxi Huayou, stated “On Dec 26, 2024, a memorable day, #Thailand’s first hot-rolled large-diameter #seamlesspipe was successfully produced in THP.”⁴⁹⁵ Below that, he posted a photograph of a facility sign with THP’s and TSP’s company names printed together to the right of THP’s logo.⁴⁹⁶ Thus, the preceding evidence indicates TSP is affiliated with THP. CBP stated in its verification agenda to TSP that “CBP officials will conduct a plant tour and visit any other TSP facilities as a part of this verification.”⁴⁹⁷ Because TSP did not report its supplier THP as an affiliated company, it concealed THP’s affiliation and so CBP did not have the opportunity to verify THP’s facility.

In addition to APP, TSP exported its merchandise to other U.S. importers as well, two of which it is affiliated with. Precise Pipe LLC (Precise Pipe) imported several shipments from TSP,

⁴⁸⁹ See TSP RFI at G-Customer Support Certificate. Bri-Steel imported shipments from TSP. See December Memorandum at Attachment 9, page 21, and Attachment 10, page 3.

⁴⁹⁰ See TSP RFI at G-Customer Support Certificate.

⁴⁹¹ See Verification Report at 4.

⁴⁹² *Id.* at 5.

⁴⁹³ *Id.*; see also Verification Exhibits at Exhibit 1, page 35.

⁴⁹⁴ See December Memorandum at Attachment 10, pages 78-79.

⁴⁹⁵ *Id.* at Attachment 10, page 90.

⁴⁹⁶ *Id.*

⁴⁹⁷ See CBP Letter to TSP, “Verification Engagement Letter and Agenda (TSP),” dated December 1, 2025 at 4.

Wuxi Huayou, and Wuxi Special Steel.⁴⁹⁸ During verification, TSP denied affiliation with Precise Pipe.⁴⁹⁹ However, several facts contradict TSP’s assertion. The LinkedIn profile of Precise Pipe states “Check out this High-quality CDS steel pipe from our Thailand Mill....”⁵⁰⁰ Precise Pipe’s website at precisepipe.com/tsp refers to its “Precise Thailand Special Pipe Mill” and provides a list of TSP’s milestones.⁵⁰¹ The certifications section of Precise Pipe’s website lists five TSP certifications, including TSP’s API 5L and API 5CT certifications.⁵⁰² The “About Our Mill” section of Precise Pipe’s website denotes a “Precise China Seamless Mill{.}”⁵⁰³ Further, precisepipe.com/wuxi-sp/ denotes its “Wuxi Precise Pipe owned mill,” lists 14 certifications issued to Wuxi Special Steel, and lists Wuxi Special Steel’s milestones.⁵⁰⁴ Correspondingly, Precise Pipe’s LinkedIn profile states “{p}roduced at our Wuxi SP Mill” and tagged them “#WuxiSP: {.}”⁵⁰⁵ Precise Pipe’s website also refers to a Precise Pipe UAE branch.⁵⁰⁶

Wuxi Huayou lists Precise Pipe’s 2825 Wilcrest Drive #210, Houston, TX address as an “Overseas Agent/Branch{.}”⁵⁰⁷ In a couple entries from TSP, Precise Pipe issued the packing lists and was listed as the [name] of TSP’s merchandise on both documents, which is consistent with affiliation.⁵⁰⁸ Moreover, Precise Pipe’s director referred to “Seamless Carbon / Alloy Steel Pipes and Tubes made by our mills: Precise Thailand Special Pipe (TSP) and Precise Wuxi SP China (WSP) for the period Jan 16th, 2023 to Jan 16th, 2024.”⁵⁰⁹ The document displayed Precise Pipe’s, TSP’s, and Wuxi Special Steel’s logos below his statement.⁵¹⁰ Thus, the preceding evidence indicates that Precise Pipe, Wuxi Special Steel, Wuxi Huayou, and TSP are affiliated companies.

Solid Piping & Equipment, Inc. doing business as U.S. Pipe & Equipment Inc. (Solid Piping or USPE) imported a number of shipments from TSP.⁵¹¹ During verification, TSP denied founding USPE; however, the Texas Secretary of State Certificate of Formation of Solid Piping DBA USPE listed TSP shareholder [individual name], also known as [individual name], as Solid Piping’s director.⁵¹² Thus, this evidence contradicts TSP’s statement that it did not participate in the founding of USPE.

⁴⁹⁸ See December Memorandum at Attachment 9, pages 15-16, 29-30.

⁴⁹⁹ See Verification Report at 6. Precise Pipe states it is headquartered in Richmond, British Columbia and has branches elsewhere as well, including in Houston, Texas. See December Memorandum at Attachments 6, 9.

⁵⁰⁰ See December Memorandum at Attachment 9, page 32.

⁵⁰¹ *Id.* at Attachment 9, pages 46, 50.

⁵⁰² *Id.* at Attachment 9, pages 47-48.

⁵⁰³ *Id.* at Attachment 9, page 48.

⁵⁰⁴ *Id.* at Attachment 9, pages 52-54.

⁵⁰⁵ *Id.* at Attachment 9, page 32.

⁵⁰⁶ *Id.* at Attachment 9, page 51.

⁵⁰⁷ *Id.* at Attachment 9, pages 16, 29, 51; Attachment 11, page 33; Attachment 14, page 20; and Attachment 17, page 190.

⁵⁰⁸ *Id.* at Attachment 17, pages 176, 190. [individual description].

⁵⁰⁹ *Id.* at Attachment 6.

⁵¹⁰ *Id.*

⁵¹¹ *Id.* at Attachment 9, pages 13, 18-20, 24-25, Attachment 10, page 5; and Attachment 12, page 4.

⁵¹² *Id.* at Attachment 14, pages 2, 4; see also TSP RFI at F-TSP-RFI Answer, page 2; see also Verification Report at 6. Additionally, [] signed one of Solid Piping’s Texas tax documents and was listed as its manager on several years’ tax documents. See December Memorandum at Attachment 14, pages 13-16.

Several items of evidence indicate TSP is affiliated with USPE also. Solid Piping/USPE is at the same 2825 Wilcrest Dr, Ste 210, Houston, TX address Precise Pipe is at; TSP affiliate Wuxi Huayou displayed this address on a business information website as its overseas agent/branch address.⁵¹³ During verification, TSP stated that [individual name] is an USPE agent but not a TSP employee.⁵¹⁴ [individual name]’s LinkedIn profile and several other websites list him as a USPE sales director.⁵¹⁵ Wuxi Huayou’s LinkedIn profile lists a “Rick@wxhytg.com” as one of its contact emails and another LinkedIn Profile for [individual name] indicates he is also a sales engineer for Wuxi Huayou and resides in the Changzhou-Wuxi-Suzhou Metropolitan Area of China.⁵¹⁶ Further, Wuxi Huayou affiliate Huajin Pipeline mentioned USPE as an affiliate: “{i}n Wuxi, China factory ‘SP.Steel Tube’, and in Thailand (TSP), the United States (USPE), Dubai (UHY) and other countries and regions set up factories and branches.”⁵¹⁷ Moreover, the “About Us” section of Wuxi Huayou’s website lists “USPE” among its other affiliates.⁵¹⁸ Thus, Solid Piping/USPE is an affiliate of Wuxi Huayou and TSP.

On the basis of TSP’s false statements, CBP finds TSP failed to cooperate with CBP’s requests for information to the best of its ability.⁵¹⁹ Thus, CBP is drawing an inference that is adverse to the interests of TSP by inferring that all the merchandise the company exported to the United States during the POI was Chinese-origin, including the merchandise exported to APP. To draw this adverse inference, CBP is relying on factual information on the record, such as TSP’s verification statements that “they only use hollow pipes as raw materials” and all these “raw materials are from China, except for one 2018 shipment from South Korea.”⁵²⁰ CBP notes it is *not* inferring that TSP’s exports of seamless large-diameter pipe to APP are SLP pipe, OCTG, or welded large-diameter pipe.

Although CBP is applying an adverse inference with respect to TSP, enough evidence exists on the record to determine that its merchandise is Chinese origin without its use and so should be subject to duties levied on Chinese-origin merchandise.

Adverse Inferences on PET, Soap Steel, and VM Industry

CBP issued RFIs to PET, Soap Steel, and VM Industry on June 18, 2025.⁵²¹ PET, Soap Steel, and VM Industry did not respond by their July 2, 2025 deadlines; therefore, CBP reminded each of them that their RFI deadlines had passed and extended their deadlines to July 8, 2025.⁵²² At

⁵¹³ See December Memorandum at Attachment 7, page 2; Attachment 9, pages 1, 4, 6-7, 9-11, 22; and Attachment 14.

⁵¹⁴ See Verification Report at 6. Two business information websites list “Rick TSP Precision Steel Tube” and “Rick Tube” as an overseas sales director for TSP. See December Memorandum at Attachment 10, pages 92, 96.

⁵¹⁵ See December Memorandum at Attachment 9, page 7-8, 25, 30.

⁵¹⁶ *Id.* at Attachment 11, pages 9, 13, 15. Page 28 of Attachment 11 lists another business information website that denotes him as a sales engineer for Wuxi Huayou as well.

⁵¹⁷ *Id.* at Attachment 11, page 47.

⁵¹⁸ *Id.* at Attachment 11, pages 1-2.

⁵¹⁹ See 19 U.S.C. § 1517(c)(3); *see also* 19 C.F.R. § 165.5(b)(3) and § 165.6.

⁵²⁰ See Verification Report at 4, 6. As noted on page 6 of the verification report, a list of raw materials also indicated that 75 of TSP’s raw material import shipments came from China.

⁵²¹ See CBP Email, “Email CBP RFI For PET,” dated June 18, 2025; *see also* CBP Email, “Email CBP RFI For Soap Steel,” dated June 18, 2025; *see also* CBP Email, “Email CBP RFI For VM Industry,” dated June 18, 2025.

⁵²² See September 24 Memorandum at Attachments 11-12, 17.

the same time, CBP mailed a physical copy of the RFIs to PET, Soap Steel, and VM Industry via FedEx.⁵²³ Nevertheless, they did not respond by the July 8, 2025 deadline; therefore, CBP again reminded them that their RFI deadlines had passed and extended their deadlines to July 14, 2025.⁵²⁴ In spite of these reminders, extensions, and mailed physical RFI copies, CBP did not receive any responses from PET, Soap Steel, and VM Industry. Thus, PET, Soap Steel, and VM Industry failed to cooperate and comply to the best of their abilities with CBP’s requests for information.⁵²⁵

CBP is drawing an inference that is adverse to the interests of PET, Soap Steel, and VM Industry by inferring that all OCTG, SLP pipe, and seamless large-diameter pipe they exported to the United States during the POI was Chinese-origin OCTG, Chinese-origin SLP pipe, and Chinese-origin seamless large-diameter pipe.⁵²⁶ To draw these adverse inferences, CBP is relying on factual information on the record, including the following facts:

- Several CF-28 responses indicate that VM Industry exported PET’s merchandise
- Soap Steel [[description of process of shipment](#)]
- The Allegations state that PET’s SLP pipe was Chinese-origin SLP pipe
- The EAPA 7890 determination that OCTG imported from PET was Chinese-origin OCTG subject to the *OCTG AD/CVD Orders*.⁵²⁷

Further, with reference to the OCTG, SLP pipe, and seamless large-diameter pipe, PET sourced from China the hollow steel billets it used in most of its production and it consumed an abnormally low amount of electricity during EAPA 7890.⁵²⁸ Thus, any shipment that contains PET’s OCTG, SLP pipe, or seamless large-diameter pipe will be deemed Chinese origin, regardless of whether it was exported by PET, Soap Steel, VM Industry, or any other company name PET used.

Finally, CBP is also drawing an adverse inference that any “drill pipe” PET, VM Industry, or Soap Steel exported during the POI is misclassified Chinese-origin OCTG. CBP is relying on record evidence that PET does not produce drill pipe based on the cargo exam CBP performed on GME Trade Ease’s entry of drill pipe from PET that contained misclassified OCTG, and on the other five cargo exams CBP performed on shipments of “drill pipe” from PET that contained misclassified OCTG.⁵²⁹

Although CBP is applying these adverse inferences with respect to PET, Soap Steel, and VM Industry, enough evidence exists on the record to determine that there is evasion without their

⁵²³ *Id.* at Attachment 10.

⁵²⁴ *Id.* at Attachments 11-12, 17.

⁵²⁵ *Id.* at Attachments 13-14. These attachments substantiate that CBP emailed the RFIs to Soap Steel’s and VM Industry’s correct email addresses.

⁵²⁶ *See* 19 U.S.C. § 1517(c)(3); *see also* 19 C.F.R. § 165.6.

⁵²⁷ *See* USA Lee Long CF-28 Response – VM Industry; *see also* Leadtop CF-28 Response – VM Industry; *see also* Allegations; *see also* September 24 Memorandum at Attachments 3, 42; *see also* June 12 Memorandum at Attachment 8.

⁵²⁸ *See* September 24 Memorandum at Attachment 42, page 27; *see also* Figure 1 above.

⁵²⁹ *See, e.g.*, June 12 Memorandum at Attachments 5-8.

use. As such, CBP determines that substantial evidence exists demonstrating that, by means of material, false statements or material omissions, the Importers entered Chinese-origin OCTG and SLP pipe from PET, Soap Steel, and VM Industry that were subject to the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders* and failed to pay the requisite duties. Additionally, CBP determines that the Importers entered seamless large-diameter pipe from PET, Soap Steel, and VM Industry that were not correctly declared to be Chinese origin. Thus, CBP determines that all the Importers' entries of OCTG, "drill pipe," SLP pipe, and seamless large-diameter pipe into the United States from PET, Soap Steel, and VM Industry during the POI are Chinese-origin OCTG, Chinese-origin SLP pipe, and Chinese-origin seamless large-diameter pipe.

Written Arguments

1. Procedural Deficiencies

Importers alleged:

- Citing the recent decision from the CIT in *Superior Commercial Solutions v. United States*, Amek and USA Lee Long claimed that the importers were not afforded notice and the opportunity to submit factual information or written arguments before CBP imposed interim measures and, as such, they were not afforded due process.⁵³⁰

Alleger asserted:

- The importers fail to allege any actual due process violations.⁵³¹
- The U.S. Supreme Court has been clear that "due process is flexible and calls for such procedural protections as the particular situation demands."⁵³²

CBP Position: CBP disagrees that it did not afford the Importers due process in this investigation. CBP provided notice of this EAPA investigation and of its interim measures in accordance with its existing statutory and regulatory authority.⁵³³ Since the beginning of EAPA, CBP has consistently provided notice of the investigation and of interim measures to parties to the investigation at or around day 90 of the investigation; therefore, CBP has acted neither arbitrarily nor capriciously.

Regarding the contention that the Importers were not able to provide written arguments before the imposition of interim measures, CBP notes that parties to the investigation provide written arguments toward the end of the investigation timeline.⁵³⁴ The purpose of this is so that their written arguments can draw on information from the case's administrative record, such as RFI responses, verification reports, *etc.* Regarding factual information, the Importers were able to provide factual information before CBP provided notice of the investigation and interim measures and afterwards, voluntarily until day 200 of the investigation, and in response to CBP's

⁵³⁰ See Amek Written Arguments at 8, 16-17; see also USA Lee Long Written Arguments at 8, 16-17.

⁵³¹ See Alleger Response to Written Arguments at 23-24.

⁵³² *Id.* at 24; see also *Morrissey v. Brewer*, 408 U.S. 471, 481, 92 S. Ct. 2593, 2600, 33 L. Ed. 2d 484 (1972).

⁵³³ See 19 U.S.C. § 1517(e); see also 19 C.F.R. § 165.15(d)(1).

⁵³⁴ See 19 C.F.R. § 165.26.

RFIs. In this investigation, CBP issued CF-28 questionnaires to each of the Importers almost three months before day 90 of the EAPA investigation.⁵³⁵ As such, the Importers had the opportunity to provide factual information in response to those CF-28s several months before CBP provided notice of the EAPA investigation and interim measures. CBP observed multiple indicators of evasion in the Importers' CF-28 responses and discussed those indicators in the NOI it provided to the Importers and Alleger.⁵³⁶ As such, and along with other factors, CBP imposed interim measures based on a reasonable suspicion of evasion.

2. Reasonable Care and Culpability

Importers alleged:

- In *Diamond Tools Tech. LLC v. United States*, 545 F. Supp. 3d 1324 (CIT 2021), the Court of International Trade (CIT) held that a degree of culpability is required for the importer to have made a material “false” statement or material omission.⁵³⁷
- Amek, APP, and USA Lee Long made no material and false statement or act, or a material omission.⁵³⁸
- APP exercised reasonable care in determining that the covered merchandise imported was a product of Thailand.⁵³⁹

Alleger asserted:

- False statements were made to enter the merchandise under investigation.⁵⁴⁰
- In *American Pacific Plywood, Inc., Interglobal Forest LLC, and U.S. Global Forest, Inc. v. United States*, Slip Op. 25-87 (CIT July 9, 2025), the CIT rejected the argument that CBP's strict liability standard for evasion was overturned in *Diamond Tools*.⁵⁴¹

CBP Position: The EAPA statute states that:

the term “evasion” refers to entering covered merchandise into the customs territory of the United States by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of

⁵³⁵ CBP issued the CF-28 questionnaires to the Importers on March 18 and 25, 2025. CBP notified the parties to the investigation of the EAPA investigation and of interim measures on June 12, 2025.

⁵³⁶ See NOI at 9-17.

⁵³⁷ See Amek Written Arguments at 14; see also APP Written Arguments at 14; see also USA Lee Long Written Arguments at 14; see also *Diamond Tools Tech. LLC v. United States*, 545 F. Supp. 3d 1324 (CIT 2021) and *Diamond Tools Tech. LLC v. United States*, 609 F. Supp. 3d 1378 (CIT 2022) (collectively, *Diamond Tools*).

⁵³⁸ See Amek Written Arguments at 13, 15; see also APP Written Arguments at 12, 25; see also USA Lee Long Written Arguments at 13, 15; see also APP Response to Written Arguments at 13.

⁵³⁹ See APP Written Arguments at 24-25.

⁵⁴⁰ See Alleger Response to Written Arguments at 17.

⁵⁴¹ *Id.* at 17-18; see also *American Pacific Plywood, Inc., Interglobal Forest LLC, and U.S. Global Forest, Inc. v. United States*, Slip Op. 25-87 (CIT July 9, 2025) (*American Pacific*).

applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise.⁵⁴²

As such, evasion occurs where a material false statement or omission is made that results in the applicable AD/CVD duties not being paid. In its EAPA determinations, CBP has always held that one may make a material false statement with reference to objective facts and regardless of whether one had any state of mind, knowledge, or culpability concerning those facts. As such, the EAPA statute does not incorporate the “reasonable care” standard; thus, it does not require that CBP “analyze the importer’s state of mind” to determine whether culpability exists before finding that evasion occurred.⁵⁴³ In contrast, Amek, APP, and USA Lee Long argue that one must have knowledge or culpability to make a false statement; they did not have knowledge or culpability that the OCTG or SLP pipe was Chinese-origin; and therefore, they did not make a false statement.⁵⁴⁴

The CIT acknowledged this difference in interpretation in *Ikadan System USA, Inc., and Weihai Gaosai Metal Product Co., Ltd. v. United States*, Slip Op. 23-88 (CIT June 13, 2023) and stated that “the precise question before the court is whether EAPA’s definition of ‘evasion’ contains a requirement that CBP find that importers acted culpably in making material false statements or omissions before determining whether the importers engaged in evasion.”⁵⁴⁵ Regarding the evasion definition, the CIT stated that “nothing in the definition requires that a materially false statement or omission be made with a particular state of mind.”⁵⁴⁶

The CIT further stated in *Ikadan* that the “Plaintiffs’ reliance on the court’s observations in *Diamond Tools* regarding culpability under EAPA is misplaced” due to unique circumstances.⁵⁴⁷ Regarding those circumstances, the CIT noted that in *Diamond Tools*, Commerce changed its position on the proper scope of the AD order and then CBP concluded that the new scope applied to the importer’s entries, including its entries before Commerce changed its position.⁵⁴⁸ The court noted that the importer in *Diamond Tools* was following Commerce’s guidance when declaring the country of origin before Commerce changed its guidance. Therefore, the *Ikadan* court found that *Diamond Tools* was inapplicable with regard to determining whether evasion required a culpability element.⁵⁴⁹ Thus, *Diamond Tools* was distinguishable from the facts in this case.⁵⁵⁰

The court in *Ikadan* rejected the arguments that a material false statement must include culpability.⁵⁵¹ Since then, the CIT has reaffirmed *Ikadan*’s finding on this issue in *Vanguard*

⁵⁴² See 19 U.S.C. § 1517(a)(5).

⁵⁴³ See 19 U.S.C. § 1517; see also Alleger Response to Written Arguments at 19.

⁵⁴⁴ See Amek Written Arguments at 13-14; see also APP Written Arguments at 14, 25-26; see also USA Lee Long Written Arguments at 13-14.

⁵⁴⁵ See *Ikadan System USA, Inc., and Weihai Gaosai Metal Product Co., Ltd. v. United States*, Slip Op. 23-88 (CIT June 13, 2023) (*Ikadan*).

⁵⁴⁶ *Id.*

⁵⁴⁷ *Id.*

⁵⁴⁸ *Id.*

⁵⁴⁹ *Id.*

⁵⁵⁰ *Id.*

⁵⁵¹ *Id.*

Trading Company LLC v. United States, Slip Op. 25-61 (CIT May 19, 2025).⁵⁵² As such, an importer need not be culpable or have knowledge that it is making a material false statement to be liable for evasion. In this case, the Importers made material false statements when they declared that Thailand was the country of origin of the OCTG, SLP pipe, or seamless large-diameter pipe they entered from PET, VM Industry, Soap Steel, and TSP.

3. Adverse Inferences

Importers averred:

- Amek, APP, and USA Lee Long fully participated in the investigation, which negates the application of adverse inferences.⁵⁵³
- Adverse inferences applied against PET cannot properly be attributed to APP.⁵⁵⁴

Alleger asserted:

- CBP should apply adverse inferences against multiple entities for not cooperating with CBP's requests for information.⁵⁵⁵
- The Federal Circuit has affirmed that CBP may apply an adverse inference against a noncooperating foreign manufacturer even if importers have cooperated to the best of their ability in an EAPA investigation.⁵⁵⁶

CBP Position: CBP is applying adverse inferences against multiple foreign exporters and U.S. importers as discussed in this notice's adverse inference section. With regard to USA Lee Long, although it responded to CBP's requests for information, it made several false statements discussed in this notice's USA Lee Long section.⁵⁵⁷ Thus, it did not cooperate to the best of its ability with CBP's requests for information. CBP notes that responding to RFI questionnaires does not necessarily indicate that a party is cooperative nor do those responses obligate CBP to overlook false statements in them and other instances of non-cooperation.

In addition to USA Lee Long and other Importers, CBP has drawn adverse inferences with respect to the foreign producers and exporters PET, VM Industry, Soap Steel, and TSP. The EAPA statute and EAPA regulations contain no suggestion that an adverse inference used with respect to a foreign manufacturer or exporter cannot affect a cooperating importer nor that the importer's participation in the investigation negates an adverse inference placed on its foreign producer or exporter. Instead, the EAPA statute states that an adverse inference may be used against a foreign producer or exporter "without regard to whether another person involved in the same transaction or transactions under examination has provided the information sought by the

⁵⁵² See *Vanguard Trading Company LLC v. United States*, Slip Op. 25-61 (CIT May 19, 2025) (*Vanguard Trading*); see also *American Pacific*.

⁵⁵³ See Amek Written Arguments at 8; see also USA Lee Long Written Arguments at 8, 15-16; see also APP Response to Written Arguments at 11-12.

⁵⁵⁴ See APP Response to Written Arguments at 11.

⁵⁵⁵ See Alleger Written Arguments at 7-8, 12-22.

⁵⁵⁶ See Alleger Response to Written Arguments at 16-17.

⁵⁵⁷ See USA Lee Long SRFI 2 at 2-4, 10-12.

Commissioner, such as import or export documentation.”⁵⁵⁸ In other words, the importer’s full cooperation and provision of those documents does not affect CBP’s application of an adverse inference against the interests of the foreign manufacturer or exporter or the consequences of that inference. As such, the consequences of that inference may impact the interests of a cooperating importer. Correspondingly, in *Skyview Cabinet USA, Inc. v. United States*, Slip Op. 23-91 (CIT June 20, 2023), the CIT also found that “collateral consequences” to an importer resulting from applying adverse inferences against a manufacturer are permissible.⁵⁵⁹ The CIT’s decision in *All One God Faith, Inc. v. United States*, 589 F. Supp. 3d 1238, 1251 (CIT August 18, 2022) confirmed this interpretation.⁵⁶⁰

As noted above, adverse inferences may be used against an uncooperative party ‘without regard to whether another person involved in the same transaction or transactions under Examination has provided the information sought.’ 19 U.S.C. 1517(c)(3)(B). Thus, CBP could apply adverse inferences in response to the alleged manufacturers’ failure to cooperate even if Consolidated Plaintiffs obtained accurate information regarding the original manufacturer and Exporter to the Subject Entries.⁵⁶¹

The Federal Circuit’s subsequent decision in *All One God Faith, Inc.* also confirmed this interpretation:

Appellants argue {d} that because they themselves cooperated with Customs’ requests for information to the best of their ability, it was improper for Customs to apply this adverse inference against the manufacturers. Appellants do not cite any law or precedent to support their position that adequately cooperative conduct by an importer should prevent an adverse inference against the manufacturer. As the trial court noted, “these adverse inferences {sic} were not applied to {Appellants}, but rather to the alleged foreign manufacturers{”} ... Because it is uncontroverted that the alleged manufacturers were not cooperative, Customs properly applied an adverse inference against the manufacturer as authorized by statute, irrespective of the conduct of other interested parties like Appellants. See 19 U.S.C. § 1517(c)(3)(B). Thus, we agree with the trial court that Customs’ application of the adverse inference was in accordance with law.⁵⁶²

Thus, even if importers are fully cooperative, that does not prevent CBP from applying inferences adverse to the interests of another non-cooperating party, such as a manufacturer/supplier/exporter. The adverse inferences applied with respect to the interests of a non-cooperating party may affect another cooperating party due to the parties being involved in the same transactions. One of the adverse inferences in this case are that all the OCTG, SLP pipe, and seamless large-diameter pipe that PET, VM Industry, Soap Steel, and TSP exported during the POI is Chinese origin. As such, once the inference has been applied to the OCTG,

⁵⁵⁸ See 19 U.S.C. § 1517(c)(3)(B).

⁵⁵⁹ See *Skyview Cabinet USA, Inc. v. United States*, Slip Op. 23-91 (CIT June 20, 2023); see also *Skyview Cabinet USA, Inc. v. United States*, Slip Op 24-132; see also *Skyview Cabinet* (CIT November 27, 2024) (collectively, *Skyview Cabinet*). The CIT upheld CBP’s remand determination.

⁵⁶⁰ See *All One God Faith, Inc. v. United States*, 589 F. Supp. 3d 1238, 1251 (CIT August 18, 2022); see also *All One God Faith, Inc. v. United States*, (Federal Circuit February 27, 2025) (collectively, *All One God Faith, Inc.*).

⁵⁶¹ *Id.* at 1251.

⁵⁶² *Id.* at 129 F.4th at 1358-1359; see also *Alleger Response to Written Arguments* at 16-17.

SLP pipe, and seamless large-diameter pipe, that inference remains regardless of the any change in the merchandise's geographic location or ownership. Therefore, the inference would necessarily impact downstream importers.

4. *Miscellanea*

Importers contended:

- The Allegations underpinning this investigation did not reasonably suggest that covered merchandise had entered the United States through evasion.⁵⁶³
- The findings from EAPA 7890 and the October 2024 verification do not reasonably support initiation of this investigation. CBP's reliance on findings from EAPA 7890 also cannot satisfy the evidentiary burden required here for substantial evidence.⁵⁶⁴
- Any action CBP takes as a result of this investigation should be limited to SLP pipe.⁵⁶⁵

Alleger asserted:

- CBP should take action to address USA Lee Long's fraudulent appearance as importer of record, which was a role it was not qualified to serve in.⁵⁶⁶
- CBP properly initiated these investigations. Furthermore, in *CEK Grp. LLC v. United States*, 633 F. Supp. 3d 1369, 1375 (CIT 2023), the CIT stated that "the standard for initiation of an EAPA investigation is low."⁵⁶⁷

CBP Position: In the USA Lee Long section, CBP discussed evidence it received during this investigation pertaining to whether USA Lee Long had the right to make entry. CBP will refer this matter for additional investigatory and/or enforcement action pursuant to 19 C.F.R. § 165.47.

Regarding whether the Allegations reasonably suggested evasion, CBP discussed the Allegations' evidence in its initiation memorandum and outlined five evidentiary items from them that led to a reasonable suggestion of evasion. CBP stands by its analysis of the Allegations and by the sufficiency of the evidence to initiate an EAPA investigation.

Regarding APP's assertions that EAPA 7890's findings do not support the initiation or determination of this investigation, CBP disagrees. Nothing in the EAPA statute or EAPA regulations prevent CBP from using documents from a previous investigation. CBP's regulations state that it may "obtain information from its own files," and CBP placed several EAPA 7890 documents it obtained from its own files on the record of this investigation.⁵⁶⁸ Further, CBP's regulations state it "may include reliance on information derived from an allegation, a prior determination in another CBP investigation, proceeding, or action..." in

⁵⁶³ See APP Written Arguments at 11-12.

⁵⁶⁴ *Id.* at 12, 17, 23; see also APP Response to Written Arguments at 12-13.

⁵⁶⁵ See APP Response to Written Arguments at 13-14.

⁵⁶⁶ See Alleger Written Arguments at 8, 29.

⁵⁶⁷ See Alleger Response to Written Arguments at 21-22; see also *CEK Grp. LLC v. United States*, 633 F. Supp. 3d 1369, 1375 (CIT 2023) (*CEK Group*).

⁵⁶⁸ See 19 C.F.R. § 165.5(a).

making an adverse inference.⁵⁶⁹ Thus, CBP may lawfully rely on EAPA 7890's documents in another EAPA investigation.

CBP used EAPA 7890's documents as evidence for several practical reasons as well. CBP used EAPA 7890's PET-related documents because PET did not participate in this investigation. Additionally, EAPA 7890's POI of February 1, 2023 to February 17, 2025 substantially overlaps this investigation's February 24, 2024 to March 9, 2026 POI. Thus, EAPA 7890's evidence directly pertained to about one year of this investigation's POI. EAPA 7890's evidence was not confined to OCTG; its record contained multiple references to PET's SLP pipe.⁵⁷⁰ Furthermore, because PET used the same hollow steel billets from China in its OCTG and SLP pipe and because of the overlapping POIs, CBP used EAPA 7890's evidence to demonstrate PET's transshipment of SLP pipe and OCTG during this investigation's POI.⁵⁷¹ Finally, though EAPA 7890's documents were important, CBP did not rely solely on them to meet the investigation's reasonable suggestion, reasonable suspicion, and substantial evidence thresholds. CBP also used evidence from this investigation's Allegations, CF-28 responses, RFI responses, cargo exams, entry documents from CBP's files, online research screenshots, and PET's questionnaire response to Commerce in its circumvention inquiry. Thus, EAPA 7890's documents were an important and pertinent source of evidence for this investigation but not the only source.

CBP disagrees with APP's contention that any action CBP takes as a result of this investigation should be limited to SLP pipe.⁵⁷² Nothing in CBP's EAPA statute or EAPA regulations limits CBP to only investigate the merchandise covered by an AD/CVD order described in the allegations.⁵⁷³ In other words, CBP's EAPA investigations can investigate the covered merchandise denoted in allegations and can simultaneously investigate merchandise covered by another AD/CVD order. Furthermore, the EAPA statute states with respect to making a determination that "with respect to covered merchandise, the Commissioner shall make a determination, based on substantial evidence...."⁵⁷⁴ As such, the EAPA statute states that a determination is made with respect to covered merchandise, but it does not limit that determination solely to covered merchandise denoted in the allegation. Thus, CBP can investigate and make a determination on covered merchandise that is not specifically singled out in an allegation.

The circumstances of this case justify CBP continuing to investigate evasion of OCTG in addition to SLP pipe. Although CBP already made a finding concerning transshipped OCTG from PET in EAPA 7890, PET has continued to facilitate the evasion of OCTG since then by exporting it under other company names, by transshipment, and by misclassifying it as drill pipe. CBP discussed indications that PET was continuing to facilitate the evasion of OCTG in this investigation's NOI.⁵⁷⁵

⁵⁶⁹ See 19 C.F.R. § 165.6(b).

⁵⁷⁰ See, e.g., September 24 Memorandum at Attachment 40, page 23, and Attachment 41, page 4.

⁵⁷¹ See Figure 1 above.

⁵⁷² See APP Response to Written Arguments at 13-14.

⁵⁷³ See 19 C.F.R. § 165; see also 19 U.S.C. § 1517.

⁵⁷⁴ See 19 U.S.C. § 1517(c)(1)(A).

⁵⁷⁵ See NOI.

CBP's corrections to incorrectly declared information are a form of enforcement action. CBP's EAPA regulations authorize such enforcement actions as follows:

CBP and other government agencies reserve the right to undertake additional investigations or enforcement actions in cases covered by these provisions. Nothing within this part prevents CBP from assessing penalties of any sort related to such cases or taking action under any other relevant laws.⁵⁷⁶

Thus, CBP can investigate merchandise in addition to merchandise described in the allegations, and CBP is authorized to take enforcement actions, including making corrections to those relevant entries.

Determination as to Evasion

In conclusion, the previously discussed facts on the record establish that Chinese-origin OCTG and Chinese-origin SLP pipe was transshipped through Thailand and imported into the United States. Furthermore, evidence on the record indicates that the Importers subsequently entered the Chinese-origin OCTG and Chinese-origin SLP pipe into the United States as type 01 entries that evaded the payment of AD/CVD duties on OCTG and SLP Pipe from China.⁵⁷⁷ CBP determines that substantial evidence exists demonstrating that, by means of material false statements or material omissions, the Importers entered Chinese-origin OCTG and Chinese-origin SLP pipe that was undervalued, misclassified, and transshipped through Thailand into the United States. The OCTG and SLP pipe that the Importers entered during the POI is subject to the AD/CVD rates on OCTG and SLP pipe from China.⁵⁷⁸ Because the Importers did not declare that the merchandise was subject to the *OCTG AD/CVD Orders* and *SLP AD/CVD Orders* on entry, the requisite cash deposits were not collected on the merchandise.

Actions Taken Pursuant to the Affirmative Determination as to Evasion

In light of CBP's determination that substantial evidence demonstrates that the Importers entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the entries subject to this investigation, until instructed to liquidate. For those entries previously extended in accordance with Interim Measures, CBP will rate adjust and change those entries to type 03 and continue suspension until instructed to liquidate these entries.⁵⁷⁹ CBP will

⁵⁷⁶ See 19 C.F.R. § 165.47.

⁵⁷⁷ Entry type "01" is the code that CBP requires importers use to designate a standard consumption entry that is not subject to AD/CVD duties. See <https://www.cbp.gov/trade/automated/ace-transaction-details>.

⁵⁷⁸ The Importers' OCTG entries are subject to the "PRC-Wide Entity" rate of 99.14 percent for AD case A-570-943 and the "All Others" rate of 13.41 percent for CVD case C-570-944. These two rates equal a combined rate of 112.55 percent. See *OCTG AD/CVD Orders*. The Importers' SLP pipe entries are subject to the "PRC-Wide Entity" rate of 98.74 percent for AD case A-570-956 and the "All Others" rate of 35.17 percent for CVD case C-570-957. These two rates equal a combined rate of 133.91 percent. See *SLP AD/CVD Orders*.

⁵⁷⁹ Entry type "03" is the code that CBP requires importers use to designate a consumption – Antidumping/ Countervailing Duty entry as subject to AD and/or CVD duties. The instructions for CBP Form 7501 (Entry Summary) state that code 03 shall be used for entries subject to AD/CVD duties. See <https://www.cbp.gov/trade/automated/ace-transaction-details>.

also make corrections to the valuation and/or classification of certain entries as discussed herein. Finally, CBP will continue to evaluate the Importers' continuous bonds in accordance with CBP's policies and will require single transaction bonds as appropriate.

None of the above actions preclude CBP or other agencies from pursuing additional enforcement actions or penalties. In particular, since CBP made its EAPA 7890 determination, CBP notes that several parties have facilitated the movement of transshipped OCTG and SLP pipe that PET exported under its company name or another company name. As such, CBP or other government agencies may investigate and prosecute any party's potential complicity in PET's repeated evasion of U.S. trade laws.⁵⁸⁰

Sincerely,



Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

⁵⁸⁰ See also 18 U.S.C. § 1001.

Appendix I

Undervaluation of USA Lee Long's POI Entries						
Entry No. (Last 4)	HTSUS	Net Weight (Kg)	Declared Value	Declared Value per Kg	Expected Value per Kg ⁵⁸¹	Updated Entry Value
4385						
2867						
7486						
5579						
5587	#s	#s	#s	#s	#s	#s
1309						
0903						
3402						
9516						
6065						
6099						
4697						

Appendix II

Undervaluation of GY Fleet's POI Entries						
Entry No. (Last 4)	HTSUS	Net Weight (Kg)	Declared Value	Declared Value per Kg	Expected Value per Kg ⁵⁸²	Updated Entry Value
2331						
2349						
2323	#s	#s	#s	#s	#s	#s
8545						
8552						
8537						
8529	7304191045*	30,219**	\$[			
8529	7304191080*	15,355**	\$[			

*GY Fleet declared that this entry only contained HTSUS 7304191045, which is SLP Pipe. However, the entry's invoice indicated it also contained seamless large-diameter pipe, which is properly classified under HTSUS 7304191080. CBP will adjust this entry accordingly. See September 25 Memorandum at 4, 7-8.

**To obtain these net weights, CBP divided the shipment's total gross weight by the individual gross weight of each HTSUS number listed in the invoice. CBP then multiplied the shipment's total net weight by the gross weight proportion (66 percent and 34 percent) of each HTSUS number, which resulted in the net weight of each HTSUS number.

⁵⁸¹ See January Memorandum at Attachment 7.

⁵⁸² *Id.*

Appendix III

Undervaluation of Leadtop/GME Trade Ease's POI Entries						
Entry No. (Last 4)	HTSUS	Net Weight (Kg)	Declared Value	Declared Value per Kg	Expected Value per Kg ⁵⁸³	Updated Entry Value
6940	7304236030*					
8910	7304236030*					
8936	#	*				
1401	#	*				
1625	7304236030*					
7522		*				
4441						
1972		*				
3358	#s	*				
9189		*				#s
7549		*	#s	#s		
7556		*	#s			
1033		*				
1017						
1066		*				
7757		*				
7773		*				
7732	7304191030					
7740						
7765						
8769						
6896		*				
6904		*				
7001		*				
1151						
9201	#s					
9219						
8045		*				
8343		*				
8335		*				
9227						
8350		*				
8393						
9128						
9136						

*Leadtop/GME Trade Ease originally declared that these were entries of drill pipe; however, they actually contained OCTG.

⁵⁸³ *Id.*